



Mainstay

EMPLOYEE HANDBOOK

January 2026

THIS HANDBOOK DOES NOT CREATE AN "EMPLOYMENT CONTRACT" OR OTHER CONTRACTUAL RIGHTS REGARDING YOUR EMPLOYMENT. ALTHOUGH Mainstay INTENDS THAT THE BENEFITS, POLICIES, AND REGULATIONS OUTLINED IN THIS HANDBOOK WILL GENERALLY REMAIN IN EFFECT, Mainstay RESERVES THE RIGHT AT ANY TIME TO AMEND, CURTAIL, DEVIATE FROM, OR OTHERWISE REVISE THE BENEFITS, POLICIES, OR REGULATIONS OUTLINED IN THIS HANDBOOK, WITH OR WITHOUT ADVANCE NOTICE. THIS HANDBOOK SUPERSEDES ALL PRIOR HANDBOOKS OR POLICIES.

Table of Contents

ABOUT MAINSTAY

a) Welcome!

b) Our Mission & Vision

YOUR EMPLOYEE HANDBOOK

EMPLOYMENT WITH MAINSTAY

c) Employment at Will

d) Equal Employment Opportunity

e) Standards of Conduct

f) Confidentiality

g) Conflict of Interest

i) Vendor Gifts

ii) Interpersonal Relationships

iii) Outside Employment

h) Background Checks

i) Introductory Period

j) Employment Status

k) Employee Records

l) Employee Privacy & Surveillance

m) Internal Transfers

n) Corrective Action & Discipline

o) Employee References

p) Rehired Employees

q) Life After Mainstay

WORKING AT MAINSTAY

a) Attendance, Tardiness & Absence from Work

b) Job Abandonment

c) Reasonable Accommodations Policy

d) Religious Accommodations

e) Lactation Accommodations

f) Policy Against Nepotism

g) Workplace Violence

h) Drug & Alcohol Policy

i) Weapons In The Workplace

j) Dress Code

k) Relocation Policy

l) Immigration Laws & Compliance

m) Travel & Business Expense Reimbursement

n) Offsite Policy

o) Mandatory Training

COMPENSATION & PAYROLL

- a) Pay Schedule
- b) Workweek & Business Hours
- c) Timekeeping
- d) No Off-The-Clock- Work
- e) Overtime
- f) Meals & Rest Breaks
- h) Payroll Deductions
- i) Salaried Deduction Compliance
- j) Payroll Discrepancies
- k) Discretionary Bonuses

PROHIBITING & PREVENTING DISCRIMINATION, HARASSMENT & RETALIATION

- a) Harassment
- b) Sexual Harassment
- c) Retaliation
- d) Reporting Harassment, Discrimination or Retaliation
- e) Training

ACCEPTABLE USE OF TECHNOLOGY & INFORMATION SYSTEMS

- a) Scope
- b) Requirements
- c) Passwords
- d) Exceptions
- e) Closed Circuit Television (CCTV) Monitoring & Recording

BENEFITS

- a) Retirement Plan
- b) Mainstay Equity Philosophy
- c) Holidays
- i) Differential Days (Holiday Pay)
- d) Exempt Employee Flex Time Off (FTO)
- e) Non - Exempt Paid Time Off (PTO)
- i) Accrual Schedule
- f) Requesting Time Off
- h) Volunteer Time Off (VTO)
- i) Voting Time Off
- j) Jury & Witness Duty
- k) Voluntary Unpaid Time Off
- l) Bereavement
- m) Group Benefits
- n) Termination with Negative PTO

LEAVES

- a) Paid Sick Leave
- b) Paid Parental Leave

c) Return To Work
d) Family & Medical Leave
e) FMLA Leave Overview
f) Eligibility
g) Leave Request Process
h) Insurance Coverage During Leave
i) Extend of Leave
j) Intermittent Leave
k) Substitution of Paid Leave for Unpaid Leave
l) FMLA Medical Certification
m) Disability Leave (including pregnancy)
n) Coordination with Other Benefits/Policies
o) Unpaid Personal Leave (UPL)
p) Leave to Accommodate a Legally Recognized Disability
q) Leave for Victims of Domestic Violence, Crime, Sexual Assault & Stalking
r) Military Leave
s) Pay During Military Leave
t) Extended Active Duty
u) Reemployment Rights
v) Additional Leave Policies
State Addendums

ABOUT MAINSTAY

a) Welcome!

Welcome to Mainstay! We are excited to have you join our team. As an employee of Mainstay (or “the Company”), you are a valuable part of an innovative team of professionals who are transforming the single family rental real estate experience. We take pride in our employees and strive to provide a friendly, safe, and productive work environment that will enable you to thrive. Whether you are new to Mainstay or have worked here for a period of time, we are confident you will find Mainstay to be a dynamic and rewarding place to work, and we look forward to a productive and successful working relationship with you.

To help us achieve our plans for the future growth and development of our business, we need to establish a firm foundation on which to build and to provide our employees with the support and resources needed to be successful. An important part of this is to establish basic rules and guidelines concerning your employment. This Mainstay Employee Handbook (the “Handbook”) is your guide to working at Mainstay. The employment policies and/or benefits summaries in this Handbook are written for all employees.

Once again, welcome to the team! We wish you success in your employment here at Mainstay!

b) Our Mission & Vision

As part of Opendoor since 2020, we began building infrastructure to make high-quality single-family homes accessible to everyone seeking the flexibility and affordability of renting. Our market intelligence and tools make it easier for owners and operators to focus on what matters most: serving residents.

Now, as an independent technology company, we're on a mission to build the most comprehensive market intelligence platform in the single-family rental industry—powering informed decision-making and unlocking opportunities for owners, operators, and residents.

YOUR EMPLOYEE HANDBOOK

This Handbook contains an overview of Mainstay employment policies. No employee handbook can completely answer or anticipate every question or concern an employee may have about the employee’s responsibilities or benefits. For that reason, if you have any questions concerning eligibility for a particular benefit or the applicability of a policy or practice to you, you should address your specific questions to the People Team by emailing hr@mainstay.io.

Your employment with Mainstay is “at will.” As an at-will employee, you may resign at any time, for any reason, and the Company may terminate your employment at any time, for any reason not prohibited by law, with or without notice. Nothing in this Handbook or any other statement, conduct, policy or practice by Mainstay is intended to or may be construed as an implied contract guaranteeing your continuous employment with Mainstay. Only the CEO and/or Chief People Officer of Mainstay has the authority or legal ability to modify the at-will nature of an employment relationship and only if it is clearly set forth in a written agreement that is signed by both the CEO and/or Chief People Officer and the employee in question. Any oral or written statements of promises to the contrary are hereby expressly disavowed and should not be relied upon by any prospective or existing employee.

With the exception of employment at will, terms and conditions of employment with Mainstay may be modified at the sole discretion of Mainstay.

This Handbook supersedes and replaces all prior versions of the Handbook or inconsistent policies. Mainstay reserves the right to add, revise, modify, supplement, or terminate any or all policies, procedures, rules, or benefits, other than the employment at-will policy, at any time. Mainstay will make reasonable efforts to keep you informed of any changes to this Handbook and the policies contained therein as they occur.

Some subjects described in this Handbook are covered in detail in official policy documents. Refer to these documents for specific information because the Handbook only briefly summarizes those guidelines and benefits. Please note that the terms of the written insurance policies are controlling and override any statements made in this or other documents.

In addition, Mainstay has employees in multiple states, and we have not listed every situation when state or local laws and regulations may differ from the policies listed in this Handbook. However, Mainstay complies with all applicable federal, state and/or local laws, although there may not be an express written policy regarding those laws contained in the Handbook. If there is a discrepancy between this Handbook and applicable law, the law will govern if it is more favorable to the employee. Please also refer to any applicable state and/or local addenda to this Handbook, as well as applicable employment and wage and hour notices that will be posted and/or distributed for review.

Please take the time now to read this Handbook carefully and familiarize yourself with Mainstay’s policies and procedures. Employees are required to acknowledge they have read, understood, and agree to comply with the provisions of the Handbook. Any questions concerning the contents of this Handbook should be directed to your manager or to the People Team at hr@mainstay.io.

EMPLOYMENT WITH MAINSTAY

c) Employment at Will

Mainstay strives to provide a positive work environment and a solid economic foundation upon which all employees may build a future. However, Mainstay is also cognizant that employees and management alike sometimes initiate personnel changes. In this regard, it is expressly understood that employment with Mainstay is at-will; it is for no specific duration and shall continue only so long as it is mutually agreeable to you and Mainstay.

As an at-will employee, either the employee or Mainstay may terminate employment, with or without cause, and at any time. No section of this Handbook is meant to be construed, nor should be construed, as establishing anything other than an employment-at-will relationship, nor does it limit management's discretion to make personnel decisions such as hiring, reassignment, change of wages and benefits, promotion, demotion, termination, or discipline. Moreover, no one in the organization, other than the CEO or Chief People Officer of Mainstay, has the authority or legal ability to modify the at-will nature of the employment relationship. The CEO or Chief People Officer can do so only if it is clearly set forth in a written agreement that is signed by both the CEO or Chief People Officer and the employee in question.

d) Equal Employment Opportunity

Mainstay is an equal opportunity employer and prohibits all forms discrimination against applicants and employees. It is Mainstay's policy and practice to provide equal employment opportunity to all qualified individuals in both personnel and employment practices including, but not limited to, recruiting, hiring, promotion, placement, transfer, training, compensation, fringe benefits, demotions, layoffs, and/or termination.

Accordingly, Mainstay prohibits discrimination of applicants and employees based on age, ancestry, color, marital or domestic partnership status, AIDS/HIV status, height, weight, reproductive health decision-making, medical condition, physical or mental disability, military or veteran's status, national origin, ancestry, race (including traits historically associated with race such as hair texture and protective hairstyles), religion or creed (including observance and practice and religious dress and grooming practices), sex (including pregnancy, childbirth, breastfeeding or medical conditions related to breastfeeding, and medical conditions related to pregnancy, childbirth or breastfeeding), gender, gender identity, gender expression, sexual orientation, genetic characteristics/information, protective order status, unfavorable discharge from military service, citizenship status, arrest record, expunged or sealed convictions, or any other basis protected by federal, state or local law or ordinance or regulation, or any other consideration made unlawful by federal, state, or local laws. Mainstay also prohibits unlawful discrimination based on the perception that anyone has any of those characteristics, or is associated with a person who has or is perceived as having any of those characteristics.

Additionally, Mainstay provides equal pay for employees who perform substantially similar work unless the difference in pay is due to seniority, merit, a system that measures production, and/or a bona fide factor other than sex, race, or ethnicity, as permitted under applicable law. Mainstay prohibits paying employees less on the basis of their sex, race or ethnicity.

Any discrimination violates this policy even if it does not rise to a violation of applicable law. Mainstay's commitment applies to all persons involved in Company operations and prohibits unlawful discrimination of any applicant or employee (including, without limitation, unpaid interns) by any employee of Mainstay, including supervisors, managers and coworkers.

Any manager or supervisor who receives a complaint or otherwise becomes aware of discriminatory conduct must report the conduct to the People Team at mainstay-hr@mainstay.io so that an investigation can be made and corrective action taken, if appropriate.

e) Standards of Conduct

Mainstay values teamwork and ethical conduct. As a business, we follow all applicable laws and regulations. As an employee, we expect you to do the same. Every employee has the duty and the responsibility to be aware of and abide by existing rules and policies.

Additionally, Mainstay is responsible for providing a safe and secure workplace and strives to ensure that all individuals employed with the Company are treated in a respectful and fair manner. The Company expects all employees to abide by certain work rules of general conduct and performance at all times. In addition, any misconduct off the job that affects the Company's ability to run its business or the employee's ability to perform their job may be a valid reason for corrective action or progressive discipline.

Regardless of your classification, status, or length of service, you are expected to meet and maintain our standards for job performance and behavior. Although there is no way to identify every possible violation of standards of conduct, the following is a partial list of infractions:

- Conduct which may endanger the wellbeing of any employee or other person on Company premises.
- Falsifying any employment document, filing a false claim of worker's compensation or harassment.
- Engaging in any kind of illegal activity while on Company time or on Company premises.
- Engaging in acts of dishonesty, fraud, theft, or sabotage.
- Performance which does not meet the requirements of the position, including

excessive absences or tardiness, reporting time inaccurately, or working unauthorized overtime.

- Driving a Company vehicle at any time or your personal vehicle on Company business while under the influence of alcohol or an illegal or controlled substance (including marijuana).
- Violating any Company policy whether or not detailed in this Handbook.
- Other circumstances that we determine warrants corrective action.

f) Confidentiality

As a condition of employment, each employee must execute a Confidential Information and Invention Assignment Agreement ("CIIAA") prior to beginning employment with Mainstay. Each employee is responsible for safeguarding confidential information obtained in connection with their employment. In the course of your work, you may have access to confidential information regarding Mainstay, its suppliers, its customers, or perhaps even fellow employees. It is your responsibility to in no way reveal or divulge any such information unless it is necessary for you to do so in the performance of your duties. Access to confidential information should be on a "need-to-know" basis and must be authorized by your manager. Any breach of this policy will not be tolerated and legal action may be taken by Mainstay.

Nothing in this policy is intended to interfere with or discourage a good faith disclosure to any governmental entity related to a suspected violation of the law. Employees cannot and will not be held criminally or civilly liable under any applicable federal or state trade secrets law for disclosing otherwise protected trade secrets and/or confidential or proprietary information as long as the disclosure is made (i) to a federal, state, or local government official, directly or indirectly, or to an attorney and solely for the purpose of reporting or investigating a suspected violation of law; or (ii) in a complaint or other document filed in a lawsuit or other proceeding, as long as such filing is made under seal. In addition, nothing in this policy is intended to preclude or dissuade employees from engaging in activities protected by state or federal law, including the National Labor Relations Act, such as discussing wages, benefits or terms and conditions of employment.

g) Conflict of Interest

You have an obligation to conduct business within guidelines that prohibit actual or potential conflicts of interest. Business dealings with outside firms should not result in unusual gain from those firms. Unusual gain refers to bribes, product bonuses, special fringe benefits, unusual price breaks and other windfalls designed to ultimately benefit you.

An actual or potential conflict of interest occurs when you are in a position to influence a decision that may result in a personal gain for you or for a relative as a result of our business dealing. No presumption of guilt is created by the mere existence of a relationship with outside firms. However, if you have any influence on transactions involving purchases, contracts or leases, it is imperative that you disclose the existence of any actual or potential conflict of interest so that safeguards can be established to protect all parties.

Where an employee is a "related party" of (a) a customer involved in an Mainstay transaction, or (b) a supplier, vendor, or service provider to Mainstay, that employee must immediately disclose his/her connection to the customer, supplier, vendor, or service provider and, if requested by the Company, recuse him/herself from the transaction and/or the customer, supplier, vendor, or service provider relationship (including but not limited to all contract negotiations with a particular supplier, vendor, or service provider). For purposes of this provision, "related party" means a family member (including family by marriage), and persons with whom the employee may have a romantic or intimate relationship or another personal connection. If an employee is not sure whether this provision applies to a particular situation, he or she should err on the side of contacting the People Team for clarification.

i) Vendor Gifts

Employees are strictly prohibited from accepting gifts or entertainment from settlement services companies (e.g., real estate brokers and agents, mortgage lenders and brokers, title companies, escrow companies, home warranty companies, home and hazard insurance companies, home and pest inspectors, real estate attorneys, appraisers, etc.), regardless of value. Employees may accept gifts of nominal value (not exceeding \$250.00) from customers, suppliers, vendors, or service providers (e.g., data providers, general contractors, recruiting firms, etc.) provided that such gifts are not excessive and/or do not create any sort of obligation on any employee and/or the Company. Gifts exceeding \$250.00 require prior written approval from the Legal Department.

ii) Interpersonal Relationships

Familial, romantic, or intimate relationships involving a managerial employee and a subordinate or other employee within the managerial employee's sphere of influence can create potential, perceived or actual conflicts of interest and may lead to possible claims of harassment and discrimination. Consequently, such relationships are discouraged and must be disclosed to the People Team. If there is any possibility that you may be engaged in a behavior or enterprise that creates, or gives the appearance of a conflict of interest, it is your responsibility to notify the People Team at hr@mainstay.io.com.

iii) Outside Employment

While you render services to Mainstay, you agree that you will not engage in any other employment, consulting or other business activity that interferes with the performance of your job duties or otherwise creates a conflict of interests. Please note that your role in Mainstay is your primary job and hence this will be your main priority. Outside employment will not be considered an excuse for poor job performance or attendance, which remain subject to disciplinary action up to and including termination of employment. If outside work activity causes or contributes to job-related problems at Mainstay, you may be asked to discontinue the outside employment.

Employees may not engage in any outside employment that competes or conflicts with Mainstay or compromises Mainstay's interests, goodwill or reputation. If it is determined that your other employment creates a conflict, you must cease your employment with Mainstay or leave your other employment.

If you are considering outside employment but are not sure if it complies with the rules and guidelines in this policy, you should speak with your manager and email the People Team at hr@mainstay.io to determine whether the outside employment complies with this policy.

Employees may not use Mainstay's property, facilities, equipment, supplies, IT systems (such as computers, networks, email, telephones, or voicemail), trademarks, brand, or reputation in connection with any outside employment. This prohibition also extends to the unauthorized use or application of any confidential information and/or trade secrets belonging to Mainstay. In addition, employees may not solicit or conduct any outside business during their work time for Mainstay.

h) Background Checks

In accordance with applicable federal, state, and local laws, Mainstay may require certain applicants and employees to satisfactorily complete a background check via Checkr. Mainstay will consider job duties, among other factors, in determining what constitutes satisfactory completion of the background check. All background checks and information obtained from a background check, will be kept confidential and used solely for employment purposes.

When a background check is required, you must complete Mainstay's authorization form. Failure to timely complete an authorization may result in termination of consideration of your employment. Falsification or omission of information may result in denial of employment or discipline, up to and including termination.

i) Introductory Period

All new team members go through an introductory period of adjustment in order to learn about Mainstay and about their job. During this time, the new team member will have time to acclimate to the Company's mission and values while also learning about their new role's expectations. Additionally, the introductory period gives the manager a reasonable period of time to assess general working habits (punctuality, attendance, working relationships, etc.), and to evaluate the employee's ability to meet established performance standards. During the introductory period, the team member will be given the support and resources needed to learn and demonstrate the duties and skills required in the new role and to achieve clearly articulated goals and expectations.

The introductory period for full-time employees is usually 90 days from the start of employment unless state or local law provides otherwise. At its discretion, Mainstay may extend the 90-day introductory period.

During this introductory period, your employment remains at-will, meaning either you or the Company may decide to end the employment relationship at any time, with or without cause. Completion of the introductory employment period does not alter an employee's at-will status, and employment may be terminated by the Company or the employee during or after completion of the introductory period at any time, with or without cause.

j) Employment Status

All employees are designated as either exempt or non-exempt under state and federal wage and hour laws. The determination of whether an employee is exempt or non-exempt is based on criteria established under the Fair Labor Standards Act (FLSA), state, and local laws.

Exempt Employees

Also known as salaried employees, are exempt from the minimum wage and overtime provisions of the FLSA, state, and local laws. Exempt employees are paid a fixed salary for each week worked and salary deductions shall only be made to the extent allowed by applicable federal and/or state law.

Non-Exempt Employees

Also known as hourly employees, are typically paid by the hour for all hours worked, are eligible for overtime, and are subject to the provisions of federal and state wage and hour laws. Non-Exempt employees must record the total hours worked and leave taken each day. Mainstay has also established the following categories for non-exempt and exempt employees:

- Regular Full-Time Employees are those normally scheduled to work 40 hours or more per week. Upon date of hire, regular, full-time employees are eligible for all

Company-sponsored benefits.

- Regular Part-Time Employees are those who are normally scheduled to and work less than 40 hours per week. Part-time employees may be eligible for Mainstay-sponsored benefits, depending on the number of hours they are regularly scheduled to work per week. All part-time employees are eligible for benefits mandated by state, local and federal law. Please refer to current benefits plan documents and Company policies for eligibility.
- Temporary Employees are those employed for short-term assignments and who are not considered regular employees. A temporary employee's status will change only if the employee is advised of such a change, in writing, by the People Team. Temporary employees are not eligible for any Company-sponsored benefits except to the extent mandated by state, local and federal law.

k) Employee Records

Your personnel file consists of the employee's withholding forms, emergency information and any performance appraisals, benefits data and other appropriate employment-related documents including those included in a definition of personnel records by applicable law. It is your responsibility to keep the personal data on file up to date. Medical and safety records, if any, will be kept in a separate confidential file.

Personnel records are considered Company property. Current and former employees may inspect and/or receive a copy of the employee's personnel records that the Company maintains relating to the employee's performance or to any grievance concerning them, in accordance with applicable law. Employees also have the right to receive copies of documents in their file that they have previously signed that relate to the obtaining or holding of employment. To the extent state law provides additional access or rights to copies of personnel or payroll records, the Company shall comply with applicable state law. Employees may not remove any document from their personnel file; however, they may add their version of any disputed item to their file.

The request to inspect and/or copy an employee's personnel file must be made in writing by a current or former employee or their representative. The request to inspect your personnel file must be submitted to the People Team at hr@mainstay.io.

l) Employee Privacy & Surveillance

Mainstay is committed to high standards of integrity with respect to protecting the privacy of its employees, and to maintaining the accuracy, confidentiality, and security of employee personal information. Accordingly, Mainstay handles employee personal information with care and in accordance with all applicable laws. If you have questions about employee privacy and handling of personal information, please contact the People Team at hr@mainstay.io. Additionally, and in compliance with federal and state laws, the

Company may find it necessary to monitor work areas with security cameras for job-, business-, or security-related reasons, and video footage collected may be used in connection with disciplinary measures. Employees should not expect privacy in working areas. Employee privacy in non-working areas will be respected to the extent possible. Please contact your People Team if you have any questions about this policy.

m) Internal Transfers

Mainstay cares about providing our employees with every opportunity possible to help them grow in their careers, wherever it may take them. To that end, Mainstay understands that employees may wish to pursue other career opportunities and development with the Company and strives to provide internal candidates with meaningful career opportunities, development resources, and exposure to company leadership.

The purpose of the Internal Transfer process is to provide clear direction on the steps to take when considering an internal transfer that prioritizes an enhanced employee experience. For more information, speak to a member of the People Team by emailing hr@mainstay.io.

n) Corrective Action & Discipline

There are occasions when employees fail to meet performance standards or to abide by Mainstay's policies, procedures, and rules governing appropriate conduct. In order to deal with such situations in a fair and consistent manner, the Company has developed a disciplinary policy and procedure.

Corrective actions may include verbal, written, and final warnings, suspensions, and termination. Corrective action is not necessarily a consecutive process, and corrective actions can be imposed at any level without prior lesser corrective action. While Mainstay attempts to utilize the principles of progressive discipline, the Company reserves the right to impose appropriate discipline as determined in its sole discretion. In determining the appropriate corrective action, the Company will consider the nature and seriousness of the behavior or performance, the circumstances of the situation, any prior corrective action, and other appropriate factors. A prior warning is not a requirement for termination.

It should be remembered that employment is at the mutual consent of the Employee and Mainstay. Accordingly, either the employee or Mainstay can terminate the employment relationship at any time at will, with or without notice, with or without cause.

o) Employee References

All requests for references must be directed to the People Team. No other manager or employee is authorized to release references for current or former employees. The Company's policy as to references for employees who have left Mainstay is to disclose only the dates of employment and the title of the last position held and, with written approval from the employee, to verify final pay rate. No other information will be provided.

p) Rehired Employees

Mainstay recognizes the contributions of former employees. Employees who leave and are rehired may be eligible to have certain benefits reinstated (e.g., sick time, paid time off).

q) Life After Mainstay

Transitioning jobs and/or making a career change can be difficult at times and Mainstay would like for this process to be as easy and seamless as possible for you and your family and the Company.

At the end of your last day, you will lose access to your computer and accounts. Here are some tips to prepare for return of company-issued equipment (laptop, iPad, etc.):

- Ensure you have removed personal files from your laptop (if it's a company-issued device).
- You'll receive a box and communications to your personal email address about returning your equipment - please note this may take place following your last day.
- Make sure to transfer ownership of any important meetings, documents or emails before the end of your last day.
- Clear out any recurring meetings you currently have set in your calendar.
- Ensure you have returned your ID badge and access card (if applicable).
- If you have an iPad, make sure to sign out of your Apple ID (if you are currently signed in).

For a full checklist of offboarding tasks and considerations review our [employee offboarding toolkit](#).

Please partner with your manager and team so that the transition of your tasks and responsibilities is as seamless and efficient as possible. If you have any questions regarding your last day and what to expect, please reach out to the People Team by emailing hr@mainstay.io.

WORKING AT MAINSTAY

Maintaining good attendance is a condition of employment and an essential job function of each employee's job. Because Mainstay depends heavily upon its employees, it is important that employees report to work as scheduled. Dependability, attendance, punctuality, and a commitment to do the job right are essential at all times.

Employees are expected to work on all scheduled workdays, during all scheduled work hours, and to report to work on time, except when they take approved time off from work or a leave of absence protected by law. Employees are expected to follow proper notification procedures if they will be late, absent or need to take time away from work during the course of their normal work schedule. This notification does not excuse the occurrence rather it simply notifies the manager. For unforeseeable occurrences, employees must notify their manager as soon as practicable, and no later than their scheduled starting time at work, absent extenuating circumstances. Employees are expected to follow proper procedures for requesting planned absences from work.

Excessive absenteeism or tardiness may result in discipline, up to and including termination of employment, at management's discretion. Termination for violation of this policy may lead to a denial of unemployment benefits. Absences protected by law will not be considered for purposes of assessing excessive absenteeism or tardiness.

a) Attendance, Tardiness & Absence from Work

Maintaining good attendance is a condition of employment and an essential job function of each employee's job. Because Mainstay depends heavily upon its employees, it is important that employees report to work as scheduled. Dependability, attendance, punctuality, and a commitment to do the job right are essential at all times.

Employees are expected to work on all scheduled workdays, during all scheduled work hours, and to report to work on time, except when they take approved time off from work or a leave of absence protected by law. Employees are expected to follow proper notification procedures if they will be late, absent or need to take time away from work during the course of their normal work schedule. This notification does not excuse the occurrence rather it simply notifies the manager.

For unforeseeable occurrences, employees must notify their manager as soon as practicable, and no later than their scheduled starting time at work, absent extenuating circumstances. Employees are expected to follow proper procedures for requesting planned absences from work.

Excessive absenteeism or tardiness may result in discipline, up to and including termination of employment, at management's discretion. Termination for violation of this

policy may lead to a denial of unemployment benefits. Absences protected by law will not be considered for purposes of assessing excessive absenteeism or tardiness.

b) Job Abandonment

Mainstay expects employees to report for work on time for scheduled shifts. An employee who is unable to report to work at the designated time is required to notify their direct manager as soon as practicable and in accordance with our leave policies. Employees who fail to report to work for three (3) consecutively scheduled workdays without the consent of the Company and/or without notifying the company of the absence, will be considered as having voluntarily resigned as a result of job abandonment, unless applicable law requires otherwise. The company will make all reasonable efforts to contact the employee during the three-day period of unnotified, unexcused absence.

If the employee is unable to contact the company for any absence, they should designate a representative (such as a family member or friend) to do so on the employee's behalf. If the employee or a representative is unable to contact Mainstay due to extreme circumstances (such as a medical emergency or natural disaster that prohibits the employee or their representative from contacting the company within three days), the employee or their representative must contact the company as soon as practicable to explain the situation.

This Policy will be applied in accordance with all applicable laws, including without limitation the Family and Medical Leave Acts, Americans with Disabilities Act (ADA) (including leave provided as a reasonable accommodation under federal, state or local law), National Labor Relations Act, Uniformed Services Employment and Reemployment Rights Act, workers' compensation acts, state and local mandatory paid sick leave laws and ordinances, and other applicable federal, state and local laws.

c) Reasonable Accommodations Policy

Mainstay complies with the Americans with Disabilities Act (ADA), Pregnant Workers Fairness Act (PWFA), and all other applicable federal, state, and local laws that prohibit discrimination against applicants and individuals with disabilities or known limitations related to pregnancy, childbirth, or related medical conditions. The Reasonable Accommodations Policy is in place to ensure we support our applicants and employees who are dealing with either a physical or mental disability or known limitations related to pregnancy, childbirth, or related medical conditions. Consistent with this commitment, Mainstay will provide reasonable accommodations to disabled applicants and employees if the reasonable accommodation would allow the individual to perform the essential functions of the job, unless doing so would create an undue hardship or cause a direct threat to the individual or others in the workplace. Likewise, Mainstay will provide reasonable accommodations to individuals with limitations related to pregnancy, childbirth, or related medical conditions unless doing so would create an undue

hardship.

Employees should contact the People Team with any questions or requests for accommodation. Mainstay encourages employees to make their request in writing, including the following information:

- A description of the accommodation the employee is requesting.
- The reason the employee needs an accommodation.
- How the accommodation will help the employee perform the essential functions of the job.

Please submit accommodation or ergonomic requests (i.e. keyboards, ergo chairs, etc.) using this [Mainstay Reasonable Accommodation Request Form](#) You will hear back from the People team regarding next steps.

Upon receiving a request, the Company will engage in an interactive dialogue with the employee to explore potential reasonable accommodations so that the employee can perform the essential functions of their job. Mainstay is not required to make the specific accommodation requested by the employee and may provide an alternative effective accommodation.

Mainstay may ask the employee to provide supporting documents. If the information provided by the employee is insufficient, Mainstay may require the employee to see a healthcare professional of Mainstay's choosing, at its expense. Mainstay will keep confidential any medical information obtained in connection with an employee's request for reasonable accommodation. Individuals will not be retaliated against for requesting an accommodation in good faith.

Mainstay prohibits any retaliation against an employee or applicant who complains in good faith about a violation of this policy, requests an accommodation, or assists in any investigation related to this policy. Any employee or applicant who believes that they have been discriminated against on the basis of a disability/pregnancy, for requesting a reasonable accommodation for a disability/pregnancy, or has experienced retaliation for exercising their rights under federal, state, or local laws related to disabilities/pregnancy and the workplace should notify the People team immediately. Mainstay will investigate all complaints as soon as reasonably possible. Any employee, supervisor, or manager who is found to have violated this policy may be subject to disciplinary action, up to and including termination.

d) Religious Accommodations

The Company respects the religious beliefs and practices of all employees and will make, on request, an accommodation for such observances when a reasonable

accommodation is available that does not create an undue hardship on Company's business.

An employee whose religious beliefs or practices conflict with his or her job, work schedule, or with Mainstay's policy or practice on dress and appearance, or with other aspects of employment, and who seeks a religious accommodation must submit a written request for the accommodation to the People Team through hr@mainstay.io as far in advance as possible and cooperate with Mainstay in seeking and evaluating accommodation alternatives. The written request will include the type of religious conflict that exists and the employee's suggested accommodation.

The request will be evaluated to determine whether a work conflict exists due to a sincerely held religious belief or practice and whether an accommodation is available that is reasonable and that would not create an undue hardship on the Company. An accommodation may be a change in job, using paid leave or leave without pay, allowing an exception to the dress and appearance code that does not affect safety requirements, or for other aspects of employment. Employees will not be retaliated against for requesting an accommodation.

e) Lactation Accommodations

Mainstay supports the legal right and necessity of employees who choose to express milk in the workplace. An employee will be permitted reasonable break time to express breast milk for nursing consistent with applicable federal, state, and local laws. Employees who would like to request a lactation accommodation should contact their People Team. An appropriate place will be provided for this purpose (not a restroom) in close proximity to the employee's work area for the employee to express milk in private. The break time will, if possible, run concurrently with any break time already provided to the employee. Break time that does not run concurrently with the break time already provided to the employee will be unpaid except as otherwise provided by applicable law. Employees must arrange all such breaks with their immediate supervisors.

Remote employees who are nursing mothers are entitled to reusable break time to express milk for up to one year after birth. Employees may adjust their schedules to accommodate lactation needs, in coordination with their manager. During video calls employees are entitled to privacy and are not required to have their camera on while pumping or breastfeeding.

Mainstay expressly prohibits retaliation against lactating employees for exercising any rights granted under applicable law.

f) Policy Against Nepotism

Mainstay generally permits employment of family members and consensual romantic relationships between employees. Employees who are or become family members, or employees who are in a supervisor/subordinate relationship and establish a consensual romantic relationship, must notify the People team promptly by connecting with the People Team or emailing hr@mainstay.io.com. In the context of this policy, "supervisor/subordinate relationship" is broadly defined as one in which a person oversees and directs the work done by others.

Mainstay makes all hiring decisions on the basis of the qualifications. If the applicant is a relative of an employee or involved in a consensual romantic relationship with an employee, the applicant and employee must inform the Company prior to any employment consideration. Failure to notify the company may disqualify the applicant from consideration.

The family member or individuals romantically involved with an employee may not be hired for a position if employment would have any of the following effects:

- Creates a (direct or indirect) supervisor/subordinate relationship with a family member or an individual who is romantically involved with an employee.
- Have the potential for creating an adverse impact on work performance.
- Create an actual conflict of interest or the appearance of a conflict of interest.

This policy also applies for assigning, transferring, or promoting an employee. Employees who become family members or establish a romantic relationship may continue employment as long as it would not have any of the effects listed above. If one of the conditions above should occur, one of the employees may be required to transfer to another position or resign. Failure to notify the People Team may subject employees to disciplinary action, up to and including termination.

For purposes of the policy, the term "family member" includes, but is not limited to spouse, domestic partner, parent, child, sibling, in-law, aunt, uncle, niece, nephew, cousin, grandparent, grandchild, and members of the household (including step and adoptive relationships)

g) Workplace Violence

It is every employee's responsibility to assist in establishing and maintaining a violence-free work environment. Therefore, each employee is expected and encouraged to report any incident which may be threatening to you or your co-workers or any event which you reasonably believe is threatening or violent. Please immediately report any incident to any manager or the People team at hr@mainstay.io. If you observe an incident or threat of violence (actual or perceived) that is immediate and serious,

IMMEDIATELY DIAL 9-1-1 and report it to the police.

A threat includes, but is not limited to, any indication of intent to harm a person or damage personal or Company property. Threats may be direct or indirect, and they may be communicated verbally or nonverbally. The Company has zero tolerance for acts of violence and threats of violence. Without exception, acts and threats of violence are not permitted.

You should feel free to report, without fear of retaliation, any condition that you believe poses a safety, health or security risk in the workplace. We will investigate such reports promptly and thoroughly and take appropriate corrective action to support this policy. All such acts and threats, even those made in apparent jest, will be taken seriously, and will lead to discipline up to and including termination.

h) Drug & Alcohol Policy

Illegal use, consumption, possession, or sale of drugs is prohibited in the workplace, while performing work for Mainstay, and at work-related functions. Employees are also prohibited from arriving to work, being on Company property, or performing work (on or off Company property) under the influence of illegal drugs.

An employee's proper use of legal drugs is not prohibited by this policy. It is each employee's responsibility to check with a physician regarding whether the use of any medication may adversely affect performance or safety at work. Any employee taking prescription drugs or over-the-counter drugs that may impair the employee's ability to perform their job functions safely and effectively is required to notify his/her supervisor of the drug use before starting or continuing work. When making such a notification, the employee should not disclose any underlying medical condition. An employee who is using a drug that may impair the employee's ability to perform their job functions safely and effectively may be subject to further assessment. In such cases, the Company will conduct an individualized assessment of the individual's ability to perform the essential functions of the job in question while utilizing such drugs before taking any further action related to the employee's employment.

Note that it is Mainstay's intention to comply with all applicable federal, state, and local laws. Where state and federal law differ, however, the Company will comply with federal law, except where otherwise provided. For example, some state laws permit the use and possession of marijuana for medical and/or non-medical purposes, but federal law does not. In the absence of state law to the contrary, the Company considers marijuana to be an illegal drug for purposes of this policy. Moreover, even if an individual's use of marijuana may otherwise be permissible under state law, the use or possession of marijuana or being under the influence or impaired by marijuana on Company property or while on Company business is strictly prohibited.

Mainstay does not prohibit employees from consuming alcohol at social or business

functions that are work related. However, employees may not consume alcohol to the point where they endanger their own safety or the safety of others, or engage in inappropriate behavior. You must call a sober driver, taxi, or car service, or use public transportation, if you have been drinking at our office or at a work-related event.

i) Weapons In The Workplace

Mainstay prohibits all employees from possessing any weapons of any kind at the workplace and while engaged in activities for Mainstay on-site at customer homes. For purposes of this policy, the workplace is defined to include Mainstay's buildings and outdoor areas, and where permitted under federal and applicable state law, it also includes Mainstay's parking lot except in jurisdictions where Mainstay's policy does not apply to the parking lot, such as Arizona, Florida, Georgia, Minnesota, Ohio, Tennessee, Texas, and Utah. In these states, employees are permitted to store lawfully possessed firearms and ammunition in their locked, privately-owned vehicles while parked at the Company's premises. Employees must comply with all applicable licensure, storage, and other legal requirements.

Weapons include the usual implements of combat, mayhem, and personal violence, such as firearms; guns, clubs; sharp and/or pointed objects, such as knives; explosive or incendiary devices; noxious, caustic, or toxic chemicals; and any item with the potential to inflict harm upon another. This list is illustrative only, and not exhaustive. You should feel free to report, without fear of retaliation, any conduct that you believe violates this policy. Mainstay will investigate such reports promptly and thoroughly and take appropriate corrective action to support this policy, up to and including termination. Please reach out to your manager or the People Team.

j) Dress Code

Mainstay strives to maintain a professional atmosphere that is conducive to our business environment, promotes an inclusive environment for all employees, and maintains a consistent professional appearance to our customers and colleagues. To that end, we require our employees to dress appropriately and neatly both when they are in-office or working remotely. Employees should exercise common sense and use their best judgment regarding their clothing and appearance in the workplace and dress in a manner that is consistent with the goals of this policy.

To assist you in this endeavor, here are a few guidelines to follow:

- Employees must always present a clean, professional appearance. All employees should maintain an acceptable level of bodily hygiene to ensure that interactions with other staff and clients remain positive and pleasant.
- Work clothes should be professional, which means they should not contain profane language or be too revealing or distracting.
- Although we allow clothes with logos, attire with offensive or inappropriate

- drawings, designs, or sayings are not permitted.
- The company has no policy against visible tattoos, but we urge our employees to cover tattoos if they are offensive.
- This policy does not prohibit an employee from appearing or dressing consistently with the employee's gender identity or gender expression.

Any employee that requires reasonable accommodation for reasons based on religion, disability, or other grounds protected by federal, state, or local laws should contact their People Team. Reasonable accommodations will be granted unless it would cause an undue hardship on the Company.

Managers or supervisors are expected to have a discussion with their employees if they are violating this dress code policy. Employees in violation should be given the chance to correct the issue and change into appropriate clothing. However, employees who repeatedly violate this policy may be subject to disciplinary action, up to and including termination.

k) Relocation Policy

Mainstay may provide support to new hires and current transferring employees to utilize in the event of a relocation. Employees wanting to relocate for a period of thirty (30) consecutive days or more are required to notify Mainstay of their plans to relocate, even on a temporary basis. Employees must obtain approval from their leader and the People Team prior to working in states other than their current state of residence.

Employees who plan to work away from their current state of residence on a temporary basis for a period of at least thirty (30) consecutive days, must update their temporary address in Rippling. Employees who wish to permanently relocate from their current state of residence must first discuss the relocation with their leader no less than sixty (60) days prior to the move to initiate the process of gaining the necessary approvals. Approvals for relocation are not guaranteed and are reviewed by the business on a case-by-case basis. The details of the terms, conditions, and applicability can be found in the Relocation Policy.

The full details of the terms, conditions, and applicability can be found in [Mainstay's Relocation Policy](#).

l) Immigration Laws & Compliance

Mainstay is committed to full compliance with federal immigration laws and to employing only those who are authorized to work in the United States. The Company does not unlawfully discriminate on the basis of citizenship or national origin.

In compliance with the Immigration Reform and Control Act of 1986, all new hires, as a condition of employment, must complete the Employment Eligibility Verification Form I-9 and present documentation establishing identity and employment eligibility, within three

working days of the new hire's start date.

Any employee with an expiring work authorization must renew the authorization prior to the expiration date of their documentation. Unexpired work authorization is a condition of employment with Mainstay, if the employee does not present the updated work authorization prior to the document expiring, the employee will no longer be eligible for employment with the Company. Renewed work authorizations are subject to reverification. In such cases, the work authorization must be presented and validated with the People Operations Team. Former employees who are rehired must also complete the form if the rehire date is past three years since the original date of hire.

All offers of employment are subject to the receipt of satisfactory evidence of an employee's authorization to work in the United States. Additional information can be obtained by contacting the United States Citizenship and Immigration Services (USCIS) at 1-800-375-5283.

At Mainstay, we partner with a third-party immigration service, Boundless, to streamline the process of hiring and retaining global talent. These specialists provide expert guidance on U.S. immigration laws, ensuring compliance and reducing the risk of errors or delays. They offer cost-efficient solutions, including reduced filing fees for visas like the H-1B, and comprehensive support from initial visa applications to permanent resident status.

This partnership enhances the employee experience by covering relocation expenses, dependent benefits, and cultural assimilation training. By outsourcing these complex tasks, we can focus on innovation and growth while our partners handle the intricacies of immigration, ensuring a smooth transition for our foreign national employees and their families.

Contact our immigration administrator, Boundless, with any questions: and continue to work with the People Team around your immigration status and needs:

Boundless : 1- 855- 268-6353

Immigration Services

m) Travel & Business Expense Reimbursement

Mainstay reimburses employees for reasonable business expenses incurred during the period they are employed by Mainstay in connection with travel and other business conducted on behalf of Mainstay, subject to the guidelines and procedures set out in the

It is the employee's responsibility to check the current version of the Travel and Expense Policy and partner with the Finance team and ensure compliance prior to purchasing or submitting for reimbursement any business expenses.

- **Documentation:** Itemized receipts are required for all expense reimbursements > \$25. An itemized receipt must show, at a minimum, vendor name, date, amount and item(s) purchased. Credit card statements do not satisfy the receipts requirement. (Some categories require receipts for items < \$25, as specified in the relevant sections of this policy.)
- **Exceptions:** Require advance approval from a member of the Executive Team.
- **Authorization:** Employees' managers review and approve the expense reports of all of their direct reports
- **Corporate Card Eligibility:** Directors and above & Employees who travel more than 4x/year may request a Corporate Card with Manager Approval
- **Timing:** Expense reimbursements must be submitted within 2 business days of each month end to avoid delays in our financial close process. Expenses must be submitted within 45 days to be eligible to be reimbursed.
- **Out of Pocket Reimbursement Processing Timing:** Day 1: Expenses are reviewed and approved by the manager. Day 2 to 15: Expenses are paid through payroll.

For full details into the Expense Travel & Spend policy, view [here](#).

This policy is intended to qualify as an "accountable plan" under the Internal Revenue Code (IRC) and relevant Treasury Regulations.

Rippling Article: [How to submit an expense reimbursement in Spend](#)

n) Offsite Policy

At Mainstay, we value bringing teams together to foster collaboration, spark innovation, and strengthen relationships through impactful offsites. These gatherings are designed to align teams across all levels, driving strategic planning and collective success. To maximize impact, offsites should be strategically scheduled around planning cycles to align on goals, reflect on progress, and chart the path forward.

What does Mainstay define as an offsite?

An offsite is a dedicated gathering of one or more teams for an extended period to achieve business objectives and strengthen team collaboration and culture. These sessions are a vital part of our success as an early-stage startup, providing uninterrupted time for focused collaboration, strategic planning, and outcome-driven discussions.

To ensure the time is productive and well-utilized, teams are expected to define clear objectives and desired outcomes prior to booking and attending an offsite. This preparation helps maximize the value of these gatherings, fostering innovation and alignment across all levels of the organization.

How often should teams expect to have offsites at Mainstay?

We aim for every employee to attend at least one offsite annually to create space for meaningful collaboration and creative thinking. However, we understand that the

frequency and structure of offsites may vary based on team goals, roles, and business needs.

How do I know which type of offsite to plan?

Planning an offsite can be challenging, as there are several factors to consider. To ensure your offsite is impactful, it's important to review these considerations during the planning process and determine whether a virtual or in-person format best suits your team's needs.

Key Considerations

- **Timing:** Offsites should be strategically scheduled to precede or follow strategic planning cycles. Additional offsites may be scheduled when there are significant shifts in business strategy or needs.
- **Attendee Selection:** Team leads should carefully consider who should attend based on the offsite's objectives and the potential impact on day-to-day operations.
- **Duration:** The length of the offsite should be determined based on the agenda and goals, balancing productivity with time away from regular duties.
- **In-Person or Virtual:** Decide when an offsite is necessary, vs. a virtual alternative, based on objectives and team needs.

Eligibility

All full-time employees are eligible to attend offsites. Contractors and part-time employees will be invited to attend if specified by the senior leadership team for a specific event.

The full details of the terms, conditions, and applicability can be found [here](#).

o) Mandatory Training

From time to time, employees may be required to undertake mandatory training regarding Mainstay's policies, operations, applicable guidelines, regulations and/or laws, and the performance of employees' job duties. Failure to complete the required training in a timely manner may result in disciplinary action, up to and including termination of employment.

COMPENSATION & PAYROLL

At Mainstay, our compensation philosophy is built on fairness, performance, and ownership. We offer competitive salaries and benefits to ensure you feel valued, with compensation tied to your impact and performance. As a key team member, you have the opportunity to own a piece of the company through equity options, aligning your success with ours. Our comprehensive benefits package includes health insurance, retirement plans, flexible time off, and other perks to support your well-being and work-life balance. We maintain open communication about compensation decisions and provide regular feedback to ensure transparency and recognition of your contributions. Our goal is to motivate, reward, and support our talented team members as we grow and succeed together.

a) Pay Schedule

- [Non-Exempt Employee 2026 Pay Schedule](#)
 - Paid 2x a month, on the 10th and 26th of every month
- [Exempt Employee 2026 Pay Schedule](#)
 - Paid 2x a month, on the 15th and last day of the month
- Note: If a pay date falls on a weekend or holiday, you will be paid on the last business day of the week prior to pay day.

b) Workweek & Business Hours

The normal workweek is seven days, starting on Sunday at 12:00 a.m. and ending on Saturday at 11:59 p.m. Our normal business hours are from 8:00am to 6:00pm, but your work hours may vary, depending on the nature of your role. Some departments may modify working hours for team members due to business needs and aim to notify team members in advance.

c) Timekeeping

To ensure that Mainstay has accurate time records and that employees are paid for all hours worked in a timely manner, non-exempt employees are required to accurately record all hours worked, all meal breaks, and leave away from the office on the Rippling Time & Attendance app in Rippling on a daily basis. Any errors or missed time in your time record should be reported immediately to your manager and/or payroll and will be subject to a change request submission.

Managers are to only approve timecards once they have been fully submitted in Rippling and reviewed at the end of the pay cycle by the employee.

Employees must ensure all time is recorded accurately. Working outside your designated work schedule is strictly prohibited unless prior approval is obtained by your manager. Fraudulent timekeeping and falsification of time records are subject to discipline, up to

and including termination of employment. Questions concerning hours worked or time records should be directed to your manager or the Payroll Team.

Rippling Help Articles:

- [Clocking In On Your Computer](#)
- [Clocking In On Your Mobile Device](#)
- [Approving Timecards](#)
- [Adding Hours Into Your Timecard](#)
- [Change Request On Timecard](#)

d) No Off-The-Clock- Work

Non-exempt employees must not perform any work without compensation, and managers/supervisors must not request, require, or permit non-exempt employees to perform work without compensation. Employees must be paid for all time worked and “working off the clock” is strictly prohibited. Non-exempt employees may not perform work prior to clocking in, after clocking out, or while on unpaid meal and rest breaks.

If you are asked to perform work off the clock, please report the request to management or the People Team as soon as possible. The Company will not tolerate non-exempt employees who work off the clock, or employees who request non-exempt employees to work off the clock. Employees who work off the clock or request an employee to perform work off the clock are subject to disciplinary action, up to and including termination.

e) Overtime

In order to meet the needs of our customers and business demands, employees may need to work overtime. Mainstay provides overtime pay to non-exempt employees consistent with federal and state laws. Unless otherwise provided under applicable state law, non-exempt employees will be paid overtime compensation at a rate of 1.5 times their regular rate of pay for all hours worked over 40 hours in any workweek. Only actual hours worked count toward the calculation of overtime. Exempt employees are not eligible for overtime pay.

Overtime must be approved by your immediate manager prior to working the overtime hours. Working unauthorized overtime may result in disciplinary action up to and including termination. Mainstay complies with all applicable federal and state laws with regard to payment of overtime work. Please see the state specific addenda to read about the details pertaining to overtime in your jurisdiction. If you believe that you have not been compensated for all hours worked or for all overtime hours worked, you must report your concern to the People team immediately.

f) Meals & Rest Breaks

Employees are provided with duty-free meal periods during their workday as outlined in this policy and in accordance with applicable state and local laws. Please see the addendum applicable to the location in which you work for additional information.

Meal periods are intended to provide employees an opportunity away from work, and employees are not permitted to perform any work during meal periods, including but not limited to checking Company email on their personal phones or other devices. Meal periods for non-exempt employees are not paid and must be accurately recorded in each employee's time records. Uninterrupted meal periods do not count as hours worked for non-exempt employees. Employees cannot skip their meal break and take it at the end of their shift to leave early. The chart below outlines the meal periods we provide to all employees:

If total length of shift worked (including rest breaks) is:	The employee is provided: The meal period must start:
Less than 3 hours, 30 minutes	No meal period N/A
3 hours, 30 minutes to 5 hours	No meal period N/A
5 hours, 1 minute to 10 hours	One 30-minute meal period No later than 5 hours into the shift.

*Employees who work more than 10 hours in a day can waive only 1 meal break in a day, in accordance with applicable law. Employees who wish to waive a second meal break must take a compliant first meal break, in accordance with applicable law. Employees are free to come and go as they please and are free to leave their work locations during their meal periods.

Non-exempt employees are required to take meal periods in compliance with this policy. No supervisor or manager may impede or discourage employees from taking meal periods breaks provided under this policy. Employees who feel they were not provided the opportunity to take all meal periods authorized and required under this policy should inform the People Team immediately.

g) Rest Breaks

In addition, Mainstay, at its discretion or as required by applicable law, may also provide employees with duty-free rest periods of short duration. Please see the addendum applicable to the location in which you work for additional information.

When taken, rest periods are counted as hours worked, and employees are not required to clock out. Rest periods are paid and should normally be taken as near as possible to the middle of the shift or work period. Rest periods may not be combined with meal periods or skipped to leave work early. Employees may not perform any work during these rest periods.

Employees are responsible for taking rest periods in compliance with this policy. No supervisor or manager may impede or discourage employees from taking rest periods provided under this policy. Employees who feel they were not provided the opportunity to take all rest breaks authorized and permitted under this policy should inform the People Team [hr@mainstay.io.com](mailto:hr@mainstay.io) immediately.

h) Payroll Deductions

Federal, state, and local laws require that Mainstay withhold the following taxes from your wages:

- Federal and state income tax.
- Social Security (FICA) taxes.
- State disability insurance taxes.
- Deductions required by wage garnishment or child support orders.
- Other appropriate state and local taxes and deductions required by law.

Mainstay also may deduct from your pay your portion of health, dental, and vision insurance premiums, retirement, or other benefit plans. No other deductions will be made, unless authorized by you and/or otherwise disclosed to you by the Company.

If you want to change the number of your exemptions or your marital status for federal or state income tax withholding purposes, please log into Rippling or email hr@mainstay.io.

Mainstay prohibits all managers from making any improper deductions from the wages of employees. If an employee believes that an improper deduction from their salary has been made, the employee should immediately report this information to the Payroll Team. Reports of improper deductions will be investigated promptly. If it is determined that an improper deduction has occurred, the employee will be promptly reimbursed for any improper deduction made.

i) Salaried Deduction Compliance

Exempt employees are paid on a "salary basis," meaning that they receive a predetermined amount of compensation each pay period. Subject to the exceptions listed below, exempt employees will receive their full salary for any workweek in which they perform any work. Salaried employees will not be paid for any workweeks in which they perform no work, subject to the Company's benefits programs and policies.

Unless state law provides otherwise, deductions from pay are permissible in the following circumstances: when an exempt employee is absent from work for one or more full days for personal reasons other than sickness, disability or approved PTO; when an exempt employee is absent for one or more full days due to sickness or disability if the deduction is made in accordance with a bona fide plan, policy, or practice of providing compensation for salary lost due to illness; to offset amounts employees receive as jury or witness fees, or for military pay; or for unpaid disciplinary suspensions of one or more full days imposed in good faith for workplace conduct rule infractions. Also, an employer is not required to pay the full salary in the initial or terminal week of employment, for penalties imposed in good faith for infractions of safety rules of major significance, or for weeks in which an exempt employee takes unpaid leave under the Family and Medical Leave Act.

j) Payroll Discrepancies

All employees are responsible for checking each paycheck for accuracy of wages paid and for personal information. All discrepancies should be brought to the immediate attention of the Payroll Team as quickly as possible so that the situation can be investigated and resolved. If you believe there are any errors in your pay, including that you have been overpaid or underpaid, that improper deductions have been taken from your pay or that your pay does not accurately reflect all hours worked, including overtime, report your concerns to the Payroll Team immediately. Mainstay will promptly investigate all reported complaints and, if appropriate, take corrective action. All employees are responsible for checking each paycheck for accuracy of wages paid and for personal information. All discrepancies should be brought to the immediate attention of the Payroll Team as quickly as possible so that the situation can be investigated and resolved. If you believe there are any errors in your pay, including that you have been overpaid or underpaid, that improper deductions have been taken from your pay or that your pay does not accurately reflect all hours worked, including overtime, report your concerns to the Payroll Team immediately. Mainstay will promptly investigate all reported complaints and, if appropriate, take corrective action.

Mainstay prohibits and will not tolerate retaliation against any employee because that employee filed a good faith complaint under this policy. Specifically, no one will be denied employment, promotion or any other benefit of employment or be subjected to any adverse employment action based on that person's good faith complaint. In addition, no one will be disciplined, intimidated, or otherwise retaliated against because that person exercised rights under this policy or applicable law.

k) Discretionary Bonuses

Employees may be eligible to receive a bonus at the complete and sole discretion of Mainstay. Specifically, Mainstay reserves complete and sole discretion to determine whether any bonuses will be paid, and if so, to set any eligibility criteria, the amount

of bonuses (if any) and the timing of bonus payments (if any).

I) Performance & Salary Reviews

The performance review process provides a means for discussing, planning and reviewing the performance of each employee. These reviews will influence salary increases, promotions and transfers, and it is critical that managers are objective in conducting their reviews and assigning performance ratings.

At Mainstay, salary increases are typically awarded during our regular performance and compensation review cycles. These cycles are designed to ensure fair and consistent evaluations of your contributions and performance, semi- annually.

While most salary adjustments will occur during these scheduled reviews, exceptions can be made for off-cycle promotions or other extraordinary circumstances. In such cases, please work closely with the HR department to facilitate these adjustments. We are committed to recognizing and rewarding your hard work and dedication in a transparent and equitable manner.

PROHIBITING & PREVENTING DISCRIMINATION, HARASSMENT & RETALIATION

Mainstay is committed to providing a work environment in which all individuals are treated with respect and dignity. Everyone has the right to work in a professional atmosphere that promotes equal employment opportunities and prohibits discriminatory practices, including harassment and retaliation.

a) Harassment

Mainstay prohibits discrimination and harassment based on any of the following categories: age, national origin/ancestry, color, marital or registered domestic partnership status, reproductive health decision-making, medical condition, military or veteran's status (including unfavorable discharge from military service), national origin, ancestry, mental or physical disability, race (including traits historically associated with race such as hair texture and protective hairstyles), religion or creed (including observance and practice and religious dress and grooming practices), sex (including pregnancy, childbirth, breastfeeding or medical conditions related to breastfeeding, and medical conditions related to pregnancy, childbirth or breastfeeding), gender, gender identify, gender expression, sexual orientation, genetic characteristics/information, protective order status, unfavorable discharge from military service, citizenship status, arrest record, expunged or sealed convictions, or any other basis protected by federal, state or local law or ordinance or regulation. Employees are also protected if they associate with a person who is, or is perceived to be, in one of those classifications.

The Company's policy applies to anyone involved in the operation of Mainstay and prohibits unlawful harassment, discrimination and retaliation of any applicant or employee (including, without limitation, unpaid interns) by any employee of the Company (including managers, supervisors, and coworkers) and any third-party doing business or in a professional relationship with the Company. This policy also prohibits unlawful harassment against persons providing services to the Company pursuant to a contract. Conduct prohibited by this policy is unacceptable in the workplace and in any work-related setting, such as during business trips, business meetings, and business-related social events.

Examples and the type of prohibited behaviors include, but are not limited to, the following:

- Verbal: suggestive, insulting or derogatory comments, epithets, innuendoes, sounds, jokes, bullying, teasing or slurs based on any of the above categories.
- Physical: assault, impeding or blocking movement, or any unwanted physical contact or interference with normal work or movement, including touching, pinching, brushing the body, impeding or blocking movement, contact or assault when directed at an individual because of any of the above categories.
- Visual: displaying derogatory posters, cartoons, or drawings, or making derogatory gestures.
- Online: derogatory statements or sexually suggestive postings in any social media platform including Facebook, X (formerly Twitter), TikTok, Instagram, Snapchat, etc.

b) Sexual Harassment

Sexual harassment is a specific type of harassment and is prohibited by Mainstay. Sexual harassment means any harassment based on someone's sex, sexual orientation, gender identity, gender expression, or gender, as described in this policy. It includes harassment that is not sexual in nature (e.g., offensive remarks about an individual's sex or gender), as well as any unwelcome sexual advances or requests for sexual favors or any other conduct of a sexual nature, when any of the following is true (unless applicable law provides for different standards):

- Submission to the advance, request, or conduct is made either explicitly or implicitly a term or condition of employment.
- Submission to or rejection of the advance, request, or conduct is used as a basis for employment decisions.
- Such advances, requests, or conduct have the purpose or effect of substantially or unreasonably interfering with an employee's work performance by creating an intimidating, hostile, or offensive work environment.

Sexually harassing behavior can be by a person of the same or opposite sex. Examples of harassment include, but are not limited to:

- Verbal/written: Sexual innuendos, suggestive comments, jokes of a sexual nature, sexual advances, sexual propositions, lewd remarks, or threats. Requests for any type of sexual favor, including repeated, unwelcome requests for dates. Unwanted sexual advances or propositions, such as: requests for sexual favors accompanied by implied or overt threats concerning the target's job performance evaluation, a promotion, or other job benefits or detriments; and/or subtle or obvious pressure for unwelcome sexual activities. This includes conduct whether spoken or communicated over electronic means (including telephone, voicemail, text message, email, social media (e.g., Facebook, Twitter/X, Instagram, TikTok, or Snapchat), or any other form of electronic communication/application).
- Nonverbal: The distribution, display, or discussion of any written or graphic material, including calendars, posters, pictures, graffiti, objects, promotional material, reading materials, clothing or cartoons that are sexually suggestive, sexually demeaning, pornographic, or shows hostility toward an individual or group because of sex/gender; suggestive or insulting sounds; leering; staring; whistling; or obscene gestures. This includes such sexual displays on workplace computers or cell phones and sharing such displays while in the workplace.
- Physical: Unwelcome, unwanted physical contact, including but not limited to, touching, pinching, patting, brushing up against, hugging, cornering, kissing, fondling, coerced sexual intercourse, or assault.

In addition, conduct based on any of the categories listed above, or any other characteristic protected by law, is not appropriate for the workplace and is prohibited, regardless of whether an individual makes a claim of prohibited behaviors.

c) Retaliation

Mainstay prohibits retaliation against anyone who in good faith reports harassment, discrimination, or participates in any investigation of discrimination, harassment, or retaliation. Anyone experiencing or witnessing any retaliatory or potentially retaliatory conduct should report the conduct immediately, using the procedures outlined in the reporting process below. Any report of retaliatory conduct will be immediately, objectively, and thoroughly investigated in accordance with Company policy. If a complaint of retaliation is substantiated, appropriate disciplinary action, up to and including termination of employment, will be taken.

Retaliation means adverse conduct exhibited in reaction to an individual reporting an

actual or perceived violation of this policy, opposing practices prohibited by this policy, or participating in the reporting and investigation process described below, or is otherwise perceived as engaging in any of the above activity. "Adverse conduct" includes but is not limited to: any action that would keep an individual from reporting harassment or retaliation; shunning and avoiding an individual who reports harassment or retaliation; express or implied threats or intimidation intended to prevent an individual from reporting harassment or retaliation; and denying employment benefits because an applicant or employee reported harassment or retaliation or participated in the complaint reporting and investigation process described below.

d) Reporting Harassment, Discrimination or Retaliation

The Company encourages reporting all perceived incidents of discrimination, harassment, or retaliation. Any employee who believes they have been subjected to or witnessed discrimination, harassment, or retaliation in violation of this policy should immediately report the facts of the incident or incidents, the names of the individuals involved, and the names of any witnesses to the People Team at hr@mainstay.io. If you receive a complaint of harassment, discrimination or retaliation from a non-employee, also immediately report the complaint to the People Team or by emailing hr@mainstay.io.com. Mainstay prohibits retaliation against any employee for making a good faith report of discrimination, harassment, or retaliation, or for participating in the investigation of such a report.

Any manager or supervisor who receives a complaint or otherwise becomes aware of conduct that may violate this policy must report the conduct to the People Team or by emailing hr@mainstay.io.com so that an investigation can be made and corrective action taken, if appropriate.

After a report is received, a timely, thorough, fair, and impartial investigation will be undertaken by qualified employees of the Company or by an outside investigator. The investigation will be conducted in a manner that will provide all parties appropriate due process. It may include individual interviews with the parties involved and, where necessary, with individuals who may have observed the alleged conduct or may have other relevant knowledge. The investigation will be documented, and the Company will track the investigation to make sure that it is progressing on a reasonable timeframe. Complaints and investigations will be handled discreetly and in as confidential a manner as possible, to the extent consistent with a full, fair, and proper investigation. However, Mainstay cannot guarantee that all aspects of a complaint will always be kept confidential, as sometimes Mainstay may need to reveal some information, for example, to conduct a thorough investigation or to impose discipline.

The investigation will be completed, and determinations made as soon as practicable, and Mainstay will reach reasonable conclusions based on the evidence collected in the investigation. The results of the investigation will be communicated to the complaining

party as soon as possible.

If Mainstay determines that a violation of this policy has occurred, effective remedial action will be taken in accordance with the circumstances involved. Any employee who has been found by Mainstay to have violated this policy will be subject to discipline up to and including termination. Because a work environment free of harassment, discrimination and retaliation is so important, Mainstay may take disciplinary action against an employee who exhibits poor judgment or engages in inappropriate behavior, including sexually inappropriate conduct, even if the conduct falls short of constituting unlawful harassment, discrimination or retaliation.

In addition to our internal complaint procedure, employees may also contact either the Equal Employment Opportunity Commission (EEOC) or the local enforcement agency in their state to report unlawful harassment. The EEOC serves as neutral factfinders and will attempt to assist the parties to voluntarily resolve their disputes. For more information, contact the People Team at hr@mainstay.io or see the applicable state specific information.

e) Training

Mainstay provides sexual harassment prevention and respect in the workplace training to employees in accordance with applicable federal, state and local laws.

If you have any questions concerning this policy, please feel free to contact your supervisor, the People Team at hr@mainstay.io, or any of Mainstay's managers.

ACCEPTABLE USE OF TECHNOLOGY & INFORMATION SYSTEMS

Mainstay is committed to protecting the assets, information, systems, and personnel that are critical to achieving its business objectives. These protections may be governed by legal, contractual, or company policy considerations. The purpose of this Policy is to establish and communicate requirements for the acceptable use of Mainstay's assets, technology and information systems. This Policy is aligned with, and supports, the Mainstay Information Security Policy. It is the responsibility of any person using Mainstay information or systems to read, understand, and follow Mainstay's Acceptable Use Policy, Information Security Policy, and Password Policy.

a) Scope

This Policy covers the use of all assets, technology, information, and other system components that are owned, operated, maintained, or controlled by Mainstay. This Policy applies to all Mainstay Employees, Independent contractors, and third parties, as applicable, with access to Mainstay non-public information, systems, and locations, Non-public information, regardless of format. System Components including Information

systems, Owned and operated infrastructure, Leveraged cloud infrastructure and systems regardless of the provider. In cases where provider policy is not aligned with this Policy, the stricter policy is applicable. All other system hardware and software, both internally and externally, that interact with these systems, and all other relevant systems.

b) Requirements

Company assets including information, systems, and system components must be used legally and primarily for business purposes. Personnel are responsible for exercising good judgment regarding the reasonableness of personal use of Mainstay systems including:

All Mainstay non-public information transmitted to, sent from, received, or printed from, or stored or recorded on systems, whether owned or leased by Mainstay, an employee, or a third party, is the sole property of Mainstay. All Mainstay issued assets must be returned as soon as possible on request or separation from the Company.

Expectation of Privacy

While Mainstay maintains a reasonable level of privacy, personnel should have no expectation of privacy when using Company assets and Mainstay reserves the right to monitor, intercept, record, and review any activity happening on Company systems.

Acceptable Use

All Mainstay information must be handled in accordance with the Mainstay Information Classification and Handling Guidelines, the Information Security Policy, and all other applicable policies and procedures. It is unacceptable for any person using Mainstay information or systems to:

1. Circumvent Security or Privacy Controls to include the tampering with, circumventing, or removal of any security or privacy controls that are in place to protect Mainstay information and systems is forbidden. Personnel are expected to notify IT immediately of any suspected failure of such controls.
2. Installing Unauthorized Software or Hardware which includes the installation of applications or hardware not intended for business purposes on Mainstay systems is prohibited. All applications or hardware installations must be authorized by IT for use.
3. Infringe Upon the Rights of Any Third Party: Mainstay assets must not be used to infringe upon or violate the rights of third parties or otherwise put at risk a third party's non-public information or assets.
4. Contribute to Any Non-Business Purpose: Mainstay assets must not be used to engage in any non-Mainstay commercial, political, religious, or illegal endeavor. Mainstay assets, technology and systems are for business use only. Any non-business use is prohibited.
5. Infringe Upon the Rights of Any Individual: Mainstay assets must not be used to engage in threatening or harassing activities or otherwise contribute to the

distribution of inappropriate, libelous or defamatory materials or messages. Sending, posting, recording, or encouraging the receipt of any information that may be offensive because of sexual, racist, or religious content, or considered discriminatory or harassing based on any characteristic protected under any applicable law is forbidden.

6. Access Inappropriate Information: Mainstay assets must not be used to access or seek to access information deemed by Mainstay to be offensive or detrimental to conducting Company business. Such information includes, but is not limited to, gambling sites, sexually explicit content, information that promotes violence or harassment, or sites and content that could disrupt Mainstay business or would otherwise constitute a violation of Mainstay policies.
7. Access Unauthorized Information: Mainstay assets must not be used to attempt to access or seek to access any non-public information or systems for which there is no business justification to access. Access to assets and information must be granted by the information owner or their authorized designee.
8. Damage the Mainstay Brand or Mission: Mainstay assets must not be used to engage in or encourage any activity that could negatively impact the Mainstay brand or mission.
9. Expose Confidential Non-Public Information: Mainstay assets must not be used to reveal non-public business information, including official Mainstay information or intellectual property without authorization. Mainstay information classifications can be found in the Mainstay Information Classification and Handling Guidelines.
10. Misrepresent Themselves: Mainstay assets must not be used to facilitate the misrepresentation of an individual as another individual or organization or to speak on behalf of Mainstay without authorization.
11. Interfere with Mainstay's Business or Personnel: Mainstay assets must not be used to engage in or encourage any activity that could negatively impact the legitimate performance of any Mainstay business or employee's job.

c) Passwords

All passwords must meet Mainstay's password length, complexity and composition requirements, which are outlined in the Password Policy. Employees should not reuse any of their previous six passwords, nor create a password that is overly similar to their previous six passwords. At no time should an employee share, disclose, or otherwise display their passwords to anyone.

Passwords used to access documents or files must be encrypted during electronic transmission. For the transmission of a password protecting confidential information, the username/file must be sent via a different medium than the password. For example, if a password protected document containing confidential information is emailed to a person, the password cannot be provided over email, but must be provided via phone, text, or

another secure medium.

For the transmission of a password protecting Restricted information, the username/file must be sent via a different medium than the password, and the password shall be broken in two parts and sent by two different mediums. For example, if a password protected document containing Restricted information is sent via email, the password must be broken in two parts and provided by two different mediums such as phone and Slack, or text and phone.

Password Expiration

Passwords for all account types must be changed in cases when a user no longer has a business requirement to access the account, when a user leaves the organization, or when a compromising event is suspected, reported, or confirmed, whichever is earliest.

d) Exceptions

Exceptions to this Policy may be granted where there is a business need. Authorizations for exceptions must be obtained from the CTO, subject to Mainstay policies and must be subject to a risk review by the Security GRC Team. In addition, this Policy does not prohibit employees' rights to discuss or disclose information about unlawful acts in the workplace, engage in discussions with co-workers of the Company that relate to the terms and conditions of their employment with Mainstay, or to participate in protected activity under Section 7 of the National Labor Relations Act.

All questions regarding the use of Mainstay assets, technology, and systems, along with the Acceptable Use policy should be directed to the Security GRC Team. The GRITS Team periodically monitors adherence to this Policy to help ensure legal, contractual, and business requirements. Failure to comply with this Policy may result in disciplinary action up to and including termination. Report suspected violations of this policy to the Security GRC Team

e) Closed Circuit Television (CCTV) Monitoring & Recording

Mainstay may use CCTV to monitor workplace areas in order to deter crime and increase the security and safety of its employees, vendors, contractors, visitors and any person physically present in the Company's premises.

CCTV may capture your personal and biometric data including but not limited to audio, electronic, visual, thermal, olfactory, and/or similar information or personal data resulting from specific technical processing relating to the physical, physiological or behavioral characteristics of a natural person, which allow or confirm the unique identification of that natural person.

Legitimate safety and security and/or investigation purposes for CCTV monitoring include but are not limited to:



- Protection of individuals, property and buildings;
- Confirmation of intrusion alarms;
- Investigation of criminal activity;
- For People Team investigations or complaints including but not limited to harassment, retaliation and the like.

Video monitoring for security purposes will be conducted in a professional, ethical, and legal manner. Information obtained through video monitoring will be used exclusively for safety, security, and law enforcement purposes. Recorded images will be stored in a secure location with access by authorized Mainstay personnel.

Images will be recorded 24/7. No audio is recorded. The images will be examined in the event of a security incident or as required, under any law and/or regulation.

All personnel involved in video surveillance will perform their duties in accordance with this Policy. Recorded video may be stored for a period not to exceed 90 days and will then be erased, unless retained as part of a criminal investigation or court proceedings (criminal or civil), or other bona fide use as approved by the Mainstay legal team. Video footage will be stored in a secure location with access by authorized personnel only.

BENEFITS

As an employee of Mainstay, we couldn't be effective in achieving our mission without you. That's why we're continually looking for ways to enhance your employee experience, with benefit programs and perks that allow you to be successful in your work. Whether it's caring for your loved ones, staying healthy, or creating opportunities for more work-life balance, we want to provide you with meaningful support mechanisms.

View our current benefit selection until Open Enrollment (July 2026) on our Mainstay Benefit Intranet: <https://client.acrisure.com/mainstay/us/2024/benefits/>

Full time Mainstay employees are eligible for the following benefits on Day 1:

- Medical, Vision, & Dental
- HSA/FSA Savings Accounts
- Commuter Benefits
- 401(k) Retirement Plan
- Work From Home Stipend
- Connectivity Reimbursement

a) Retirement Plan

Empower Retirement is our 401(k) and investment retirement plan provider. Those who are enrolled in a 401(k) employer plan are eligible for empower contributions:

- Employees who make less than or equal to \$80,000 will receive \$1,000 annually (\$250 per quarter).
- Employees who make greater than \$80,00 will receive \$500 annually (\$125 per quarter).

The employer contribution will be deposited into your account on a quarterly basis. There is no action required by you, you are still eligible to receive this contribution whether or not you choose to contribute towards the 401(k).

If you have any questions in regards to 401(k) please contact payroll@mainstay.io

b) Mainstay Equity Philosophy

Mainstay's equity program aligns employee and investor interests, rewarding performance and fostering shared success. We prioritize pay-for-performance, offering outsized rewards to high-impact individuals while ensuring all employees hold meaningful ownership. Employees benefit from company growth through increased stock value and, for select teams, additional cash earnings when revenue targets are exceeded. Award sizes are based on market data, tailored to role, level, and performance, and designed to compete with Series A/B startups and pre-IPO tech companies.

For more details, see the 2023 Mainstay Stock Plan.

c) Holidays

Mainstay observes (11) paid holidays per year:

- New Year's Day
- Martin Luther King Jr Day
- Presidents' Day
- Memorial Day
- Juneteenth
- Independence Day
- Labor Day
- Thanksgiving Day
- Day after Thanksgiving
- Christmas Eve
- Christmas Day

In addition to the observed holidays, all employees are entitled to one (1) floating holiday. The floating holiday is a paid day off from work, given as a substitute for Mainstay company observed holidays and may, subject to manager approval, be used only for religious or cultural holidays, other state or federal holidays during which Mainstay remains open and employee birthdays. If a floating holiday is not used within the calendar

year it is granted, it is forfeited and does not carry over.

To be eligible for holiday pay, you must be regularly scheduled to work on the day on which the holiday is observed and must work your regularly scheduled working days immediately preceding and immediately following the holiday, unless you're on an approved paid time off such as FTO/PTO/sick time approved by your manager or a paid leave of absence such as parental leave.

Depending on your job, you may be asked or required to work on a scheduled holiday. Non-exempt/hourly employees who are asked or required to work on a scheduled holiday will receive holiday pay in addition to premium pay of 1.5x their hours worked on the holiday. This is based on the observed holidays listed above. For example, if you are a full-time, non-exempt/hourly employee paid at \$10/hour and work 3 hours on December 25, you will receive 8 hours of holiday pay + 3 hours of pay (calculated at 3 hours * \$15/hour).

Paid holiday time off will not be counted as hours worked for the purposes of determining overtime. Employees on an unpaid leave of absence are not eligible for holiday pay. Please work with your direct manager or the People Team if you have questions around working on a company holiday.

View our full 2026 Mainstay holiday calendar [here](#).

i) Differential Days (Holiday Pay)

Below are the holidays Mainstay has identified as difficult to staff. These holidays are subject to change based on business needs and peak business days. The days below are observed on the actual calendar day, which may differ from the company observed holidays, but will have the 1.5x hourly rate applied to regular hours worked:

- New Years Day
- Easter Sunday
- Mother's Day
- Memorial Day
- Father's Day
- Juneteenth
- Independence Day
- Labor Day
- Thanksgiving Day
- Friday after Thanksgiving
- Christmas Eve
- Christmas Day

Holiday pay will be applied for three (3) company holidays (New Year's Day, Thanksgiving

Day, and Christmas Day), regardless of whether or not you work that day.

On occasion, it may be necessary for a business unit to work on one of these three (3) company holidays. In those cases, all regular hours worked by a non-exempt team member will be paid at time 1.5x their regular hourly base rate, in addition to the eight (8) hours of holiday pay they will receive. For example, If an Operations team member works on Christmas Day (12/25), they will receive 1.5x pay + 8 hours of holiday pay. Respectively, if an Operations team member doesn't work on Christmas Day (12/25), they will receive 8 hours of holiday pay. Additionally, if an Operations team member is scheduled to work on the company observed holiday (12/26) vs the actual Christmas Day (12/25), they will just receive regular pay for hours worked on 12/26.

d) Exempt Employee Flex Time Off (FTO)

The Company provides flexible paid time off (Flexible PTO) benefits to regular, full-time and reduced-schedule exempt US employees who are regularly scheduled to work at least 30 hours per week. Flexible PTO may be used for any reason, including any reason covered by an applicable paid sick leave law.

Regular, full-time exempt employees will be entitled to take Flexible PTO, without loss of pay, up to fifteen (15) consecutive business days at a time dependent on manager approval. There is no limit to the amount of Flexible PTO an eligible employee may take in a single year.

Flexible PTO is not a form of additional wages for services performed, but is part of Mainstay's promise to provide a flexible work schedule—including employees' ability to decide when and how much time to take off. Because Flexible PTO is not accrued, earned, or tracked, there is no concept of "unused" Flexible PTO, it will not carry over from one year to the next, and there will be no payout of Flexible PTO upon separation of employment.

We trust that employees eligible for Flexible PTO will exercise good judgment in considering their responsibilities to the Company and in consulting with their managers to determine reasonable time off before requesting Flexible PTO, except in cases of illness, injury or other emergency. Employees should avoid taking Flexible PTO that negatively impact their job and the Company. Employees should coordinate with their team members in advance of anticipated time off to ensure that work is covered and remains on track.

Reasonable efforts will be made to approve requests; however, with the exception of requests for reasons covered by an applicable paid sick leave law or for a legally protected leave of absence, the Company reserves the right to deny Flexible PTO requests in its sole discretion, including but not limited to, if the timing of the request does not satisfy business operational needs or will result in inadequate staffing levels due

to other employees taking Flexible PTO at the same time. Managers will approve reasonable Flexible PTO requests based on legitimate business reasons (such as the employee's productivity, progress the employee has made on his or her goals, the status of projects, and fairness to the employee's coworkers).

Employees and managers should communicate openly and use common sense when requesting or approving Flexible PTO so the policy is applied fairly and equitable amongst all eligible employees.

e) Non - Exempt Paid Time Off (PTO)

Mainstay understands the importance of work-life flexibility and the wellbeing of our employees. This paid time off (PTO) policy is designed to provide our dedicated teammates with the flexibility and time they need to rest, recharge and attend to personal priorities. PTO may be used for any reason, including any reason covered by an applicable paid sick leave law (and in accordance with said applicable paid sick leave law). To the extent permitted by law, paid sick leave should be used first. To be eligible to accrue PTO under this policy, you must be a regular, non-exempt (hourly paid) employee who is based in the United States and works at least 20 hours per week.

Accruals begin effective the employee's date of hire. In situations of rehires, an employee's continuous service date is used to determine accrual entitlement. Balances are accrued pro-rata per semi-monthly pay period.

Exempt employees and temporary employees (e.g., interns) are not eligible to accrue PTO under this Policy. Exempt employees should refer to Mainstay's Exempt Employee Flex Time policy.

i) Accrual Schedule

Years of Completed Service	Accrual per Pay Period	Accrual per Year	Maximum Accrual
0-5 Years	.66 days (5.33 hours)	16 days (128 hours)	22.5 days (180 hours)
5+ Years	.83 days (6.67 hours)	20 days (160 hours)	30 days (240 hours)

Once the maximum accrual balance is reached, no additional PTO will be accrued until the balance is reduced below the cap. PTO ceases to accrue when an employee is on an unpaid leave of absence. Accrued and unused PTO, up to the maximum accrual, will carry over to the following year.

Employees who are scheduled to work less than 40 hours per week will accrue a pro-rata

amount of PTO per pay period based on the hours they are regularly scheduled to work each week. Such employees are also subject to a pro-rata maximum accrual balance.

f) Requesting Time Off

All PTO requests must be submitted in Rippling and approved by the employee's manager prior to taking PTO. For unforeseeable uses of PTO, employees must notify their manager as soon as possible and no later than their scheduled starting time at work, except for extenuating circumstances. Accrued PTO may be used in 15-minute increments. Employees may request to use up to 5 days (40 hours) of PTO that they have not yet accrued, meaning that they will be allowed to go up to 5 days (40 hours) negative on their PTO balances, subject to manager approval. Any unused accrued PTO will not be paid out upon an internal transfer to an exempt position within Mainstay, except as otherwise required by applicable law.

For the purpose of this policy, years of service is calculated from an employee's date of hire or continuous service date (if applicable) and any accrual increases will occur on the anniversary date. For example, if an employee completes their five years of service on July 15, they will accrue .66 days per pay period from January - July and accrue .83 days per pay period from August through December.

Rippling: Help Article: [How do I request time off?](#)

Rippling: Help Article: [How do I view my PTO balance?](#)

g) International Travel Policy

Since 2020, we have been living in unprecedented times. We understand the desire to travel and/or work remotely. However, for many reasons (employment law, immigration, insurance, permanent establishment, equity and tax considerations), we *cannot* support work overseas for a lengthy period of time. This is not unique to Mainstay, or unusual, for any US-based company.

We understand you may need to travel internationally and encourage taking time off, leveraging PTO, and disconnecting. Additionally, we also have Leave of Absence policies and programs, to support you, if needed. If you need to take your laptop with you, please check with IT for any security concerns. Otherwise, the guidance is spending *no more* than 2 weeks per 12 rolling months overseas for "work".

Please note: Travel to Russia and China is not permitted with any Mainstay laptop. Additionally, the below countries do not have VPN accessibility, so advised you not to bring a laptop: China, Russia, Iran, United Arab Emirates, Oman, Turkey, Iraq, Turkmenistan, Belarus, North Korea.

If you will be overseas, please refer to the [State Department Travel Advisory](#).

**Please note: This is only applicable to full-time, regular (exempt) employees.*

h) Volunteer Time Off (VTO)

Mainstay values community service and believes it's important to give back to the communities in which we operate. We encourage all regular employees to spend up to eight (8) hours per year on community service, which can be tracked as paid Volunteer Time Off (VTO). Any use of VTO must be approved by the employee's manager with two weeks advance notice of taking the time off.

Our team members should use this time to assist the non-profit organization(s) of their choice. We encourage teams to consider using this time together as it can also be a great way to bond and team-build. Whether it's building a home through Habitat for Humanity or serving a meal at a local homeless shelter, these experiences help connect us to our communities and remind us about the importance of giving.

All regular employees are provided eight (8) VTO hours to be used throughout the calendar year with a minimum increment of four (4) hours. Any unused VTO hours will not carry over from year to year and will not be paid out upon termination of employment.

i) Voting Time Off

Mainstay believes that it is the responsibility and duty of employees to exercise the privilege of voting in elections. In accordance with this philosophy, the company will grant its employees approved time off to vote if necessary due to work schedules and for periods of service as an election official.

Although polls are open for extended hours, we realize that in some instances some employees' work schedule may make it difficult for them to vote during polling hours. This policy applies to tribal, municipal, county, state, and federal elections.

In such an event, the employee is expected to work with their direct manager at least two weeks prior to taking paid time off, to allow for three (3) consecutive hours to vote, unless otherwise provided by applicable state law. The manager has discretion in determining whether the time taken will be provided at the beginning or ending of the employee's shift. All Mainstay employees are provided up to eight (8) hours of paid voting time off to use throughout the year to encourage participation in their respective communities, unless applicable state law requires greater benefits.

As a civil volunteer of your local community if you are wanting to participate in voting poll events, volunteer time off can be applied for these instances. Please refer to the Volunteer Time Off policy for eligibility requirements. Voting Time Off may be used in increments of 1 hour, and any unused time will not be paid out upon termination of

employment. Please direct all inquiries about this policy to the People Team at hr@mainstay.io.

j) Jury & Witness Duty

Mainstay recognizes that employees may be called to serve jury duty or witness leave. Employees will receive regular pay for a maximum of forty (40) hours pay in accordance with state guidelines while serving jury duty or witness leave. Upon receipt of notification from the state or federal courts of an obligation to serve on a jury or to act as a court witness, you should notify your manager & People Team by providing copies of the subpoena or jury summons.

Once the People Team receives your documentation they will input the hours into Rippling on your behalf and save any documentation in your Rippling profile.

Any additional jury duty leave that is not required to be paid under the Jury and Witness Duty policy or applicable state law will be unpaid.

The Company shall not discharge, discipline or otherwise penalize an employee because the employee is absent for the purpose of attending jury duty or if employee is absent for the purpose of attending a judicial proceeding in response to a subpoena or other court order or process which requires the attendance of the employee at the judicial proceeding, provided that the employee gives advance notice to the Company of the expected absence to the extent permitted by applicable law. The provisions of this section do not apply if you are absent from work to attend a judicial proceeding as a criminal defendant.

k) Voluntary Unpaid Time Off

Mainstay is subject to seasonal trends as well as other macroeconomic conditions that can cause business volume to increase or decrease for short and extended periods of time. When volume is projected to be low, hourly team members will be offered the opportunity to take advantage of voluntary time off (VTO) either by logging fewer hours on their timesheet or by using an existing PTO balance.

Eligible employees must be compensated hourly, have approval from their manager and use no more than sixteen (16) hours of unpaid VTO per month. The availability of VTO will be based on regional needs, subject to partner forecasts and may not be available to all employees on a single team as employees may cover different regions.

l) Bereavement

Mainstay is supportive of you and your family through life's challenging times. If a loved one has passed, we want you to have time away from work to heal from your loss, including the loss of an unborn child. Our bereavement time off provides up to ten (10)

consecutive days of paid time off in the event of the death of the employee's spouse, domestic partner, child, stepchild, parent, stepparent, parents in law, siblings and step siblings. These days can be taken consecutively or non-consecutively. If bereavement time is taken non-consecutively, please make sure you make arrangements with your manager prior to taking bereavement time so that business processes are not disrupted. You are also entitled to two (2) consecutive days of paid time off in the event of the death of other close family members and loved ones.

Bereavement time off must be requested and approved in advance by your manager unless advance notice and approval is not possible. In such a case, notice must be given as soon as possible. Please notify the People Team the dates bereavement will be taken and the team will input your time into Rippling.

The start of your paid bereavement time should be taken within 30 days of notice of death, unless there are outstanding circumstances that will need to be discussed and approved by your manager. If bereavement time cannot be taken within 30 days, please notify your manager and the People Team. Bereavement days do not carry over from calendar year to calendar year and are not paid out upon employment termination.

Any employee who falsifies information to obtain paid time off under this Policy will be subject to disciplinary action up to and including termination.

m) Group Benefits

Certain employees of the Company may be eligible for coverage under the Company's fringe benefit plans that may exist (e.g., medical, vision, dental, retirement, and other insurance). The benefit plan documents control the terms, applicability, availability, and requirements for each plan. Please visit this Backyard page or contact the People Team at hr@mainstay.io for additional information.

n) Termination with Negative PTO

In the event an employee uses PTO in advance of accruing and their employment terminates, they may be required to reimburse the company for those days/hours, in accordance with applicable law. Any unused accrued PTO will not be paid out upon termination of employment, except as otherwise required by applicable law.

LEAVES

At Mainstay, we understand that life can be unpredictable and that there are times when taking a leave of absence is necessary. Whether you need to care for a serious health condition, attend to family matters, or pursue personal or educational opportunities, we are committed to supporting you through these periods.

View our full Leave of Absence Policy: [here](#)

a) Paid Sick Leave

Mainstay recognizes employees will occasionally need time off from work to recover from illness or injury, to address their medical needs or to take care of a family member who is sick.

All full-time employees are granted 80 hours (10 days) of sick leave on January 1 of each calendar year. New hires will be granted sick leave on a pro-rata basis. Mainstay reserves the right to require documentation from a health care professional to verify the need for sick leave and/or authorizing the employee to return to work, in accordance with applicable law. At year-end, accrued, unused sick leave will not carry over to the subsequent year unless state law provides otherwise. Sick leave is not eligible for payout upon termination.

Eligible employees may begin using paid sick leave right away following the start of employment. Paid sick time may be used for the following reasons:

- Because of or for medical diagnosis, care or treatment of an existing health condition of, or preventative care for, an employee or an employee's qualifying family member;
- Because of an employee's or an employee's qualifying family member's mental or physical illness or injury;
- For specified purposes, if the employee or the employee's qualifying family member is a victim of domestic violence, sexual violence, sexual assault, abuse or stalking, including:
 - to obtain services from a domestic violence shelter, rape crisis center, or other shelter or services program for relief from a family offense matter, sexual offense, stalking, or human trafficking;
 - to participate in safety planning, temporarily or permanently relocate, or take other actions to increase the safety of the employee or employee's family members from future family offense matters, sexual offenses, stalking, or human trafficking;
 - to meet with a civil attorney or other social service provider to obtain information and advice on, and prepare for or participate in any criminal or civil proceeding, including but not limited to, matters related to a family offense matter, sexual offense, stalking, human trafficking, custody, visitation, matrimonial issues, orders of protection, immigration, housing, discrimination in employment, housing or consumer credit;
 - to file a complaint or domestic incident report with law enforcement or to meet with a district attorney's office;
 - to enroll children in a new school; or

- to take other actions necessary to maintain, improve, or restore the physical, psychological, or economic health or safety of the employee or the employee's family member or to protect those who associate or work with the employee.
- For specified purposes related to the employee's bone marrow donation or organ donation to another person or to care for or assist a family member or designated person who is donating bone marrow or an organ; or
- Closure of the employee's place of business by order of a public official due to a public health emergency or an employee's need to care for a child whose school or place of care has been closed by order of a public official due to a public health emergency, or care for oneself or a family member when it has been determined by the health authorities having jurisdiction or by a health care provider that the employee's or family member's presence in the community may jeopardize the health of others because of his or her exposure to a communicable disease, whether or not the employee or family member has actually contracted the communicable disease.

"Family member" means a child (biological, adopted or foster child, stepchild, legal ward, child of the employee's registered domestic partner, or child to whom the employee stands in loco parentis, or stood in loco parentis when the child was a minor), parent (biological, adoptive or foster parent, stepparent, or legal guardian of an employee or an employee's spouse or domestic partner, or a person who stood in loco parentis when the employee, employee's spouse or domestic partner was a minor child), spouse, registered domestic partner, or grandparent, grandchild, or sibling (whether of a biological, foster, adoptive or step relationship) of the employee or the employee's spouse or domestic partner, or any other individual whose close association with the employee is the equivalent of a family relationship.

Employees who need to use sick time for foreseeable absences, such as for planned doctor's appointments, must make a good faith effort to provide reasonable advance notice of the absence and make a reasonable effort to schedule the time off in a manner that does not unduly disrupt operations. If the need to take sick leave is not foreseeable, the employee should provide notice to their supervisor as soon as practicable. To the extent permitted by applicable law, certification by a health care provider is required for absences of three or more consecutive work days due to illness or injury.

Health information about an employee or an employee's family member, and information concerning an employee's or his or her family member's status or perceived status as a victim of family offenses, sexual offenses, stalking or human trafficking obtained solely for the purposes of utilizing safe/sick time shall be treated as confidential and shall not be disclosed except by the affected employee, with the written permission of the affected employee, or as required by law.

Sick leave may be taken in increments of no less than 15 minutes. To the extent applicable, employees must use available accrued paid sick leave before using Flexible

PTO or PTO for protected sick leave purposes. Any employee taking sick leave for more than five consecutive work days will become eligible to apply for Short Term Disability.

It is the employee's responsibility to apply for any insurance benefits for which the employee may be eligible as a result of a sick leave absence, including California State Disability Insurance, Workers' Compensation Insurance, California Paid Family Leave Insurance and/or any long-term disability insurance benefits for which the employee may qualify. The combination of any such payments and accrued sick leave cannot exceed the employee's regular base weekly earnings.

Mainstay strictly prohibits discrimination and retaliation against any employee for asserting any claim or right to paid sick time under applicable law, assisting any other person in doing so, or informing any person of their rights under applicable law. Employees with any concerns regarding discrimination or retaliation in violation of this policy must immediately alert the People Team at hr@mainstay.io. If you have additional questions about the Company's FTO policy, PTO policy or paid sick leave, or for additional details, please contact the People Team at hr@mainstay.io.

b) Paid Parental Leave

Mainstay has established a parental leave policy to provide employees with paid time off following birth, adoption or placement of a foster child. This parental leave provides an opportunity for eligible employees to care for and bond with the child. This parental leave runs concurrently with FMLA and state-provided leaves, as applicable. If you are planning on taking parental leave, please work with the People Team and your direct manager as well as submit [this form](#) so Mainstay has the necessary details of your parental leave.

Eligibility:

- All regular exempt and non-exempt employees who work at least 20 hours per week.
- Employees who've completed at least six months of continuous employment, except as otherwise required by applicable law.
- Employees based in the U.S.
- Primary caregiver parent (whether through surrogacy or adoption as qualifying event) is given 12 total weeks of paid parental leave per qualifying event
- Non-primary caregiver parent (whether through surrogacy or adoption as qualifying event) is given 8 total weeks of paid parental leave per qualifying event
 - Beginning January 1, 2026 non-primary caregiver parent will be given 8 weeks of paid parental leave
- Benefit is limited to 12 total weeks (or 8, as applicable) of parental leave in any 12-month period (regardless of the timing of qualifying events)

In addition to the above eligibility, employees must meet one of the criteria below:

- Have given birth to a child
- Be a partner of someone who has given birth to a child

- Have adopted a child or been placed with a foster child (in either case, the child must be age 17 or younger). The adoption of a spouse or partner's child is excluded from this policy.

Benefit:

- 12 weeks paid parental leave at 100% base pay for the birthing parent per qualifying event
- 8 weeks paid parental leave at 100% base pay for the non-birthing parent per qualifying event
 - Beginning January 1, 2026 non-birthing parents will receive 8 weeks of paid leave
- Parental leave must be taken within 12 months of birth, adoption or placement of foster child
- Parental leave can be taken all at once, or a maximum of two incremental time frames within the 12-month period. Each incremental time frame must be a minimum of one week. Any unused leave after the two increments will be forfeited.
- May take one parental leave every 12 months for a qualifying event.
- Multiple births (e.g. twins) or adoption of multiple children at the same time are treated as one event and does not increase the amount of paid parental leave.
- Coordination with State Benefits: In states that offer paid family leave, employees must apply for the wage replacement benefits through their respective state. Mainstay's paid parental leave is automatically offset by the amount employees are expected to receive through their state.
 - In states that pay less than 100% of an employee's base pay, Mainstay will pay the remaining balance.
- Paid Parental Leave will be paid on a semi-monthly basis on regularly scheduled pay dates.

Employees must apply for any wage replacement benefits available through state paid family leave or similar wage replacement benefits available in the applicable jurisdictions. Mainstay's paid parental leave is inclusive of any state payments that an employee is eligible for. If local payment assistance is less than 100% of your base pay, Mainstay will contribute the remaining amount. Paid Parental Leave will be paid on a semi-monthly basis on regularly scheduled pay dates.

Coordination with Other Benefits/Policies:

- Health Benefits - All Company-provided health benefits that an employee was receiving immediately prior to the period of leave will continue while that employee is on Paid Parental Leave. Employees are required to continue to pay the same portion of the health premiums due to Mainstay under the same terms and conditions as if the employee were actively working during the Paid Parental Leave.
- Company Holidays - Paid Parental Leave supersedes any company holiday. Employees will not receive holiday pay while on Paid Parental Leave.

- Paid Time Off - An employee may not receive Flexible PTO or PTO in addition to Paid Parental Leave for the same period of absence. PTO accruals cease while an employee is on leave and will resume once they return to work.
- Stock Options & Restricted Stock Units (RSU) - There is no impact to an employee's RSU vesting schedule while an employee is on parental leave.
- Mainstay Stock Options - There is no impact to an employee's stock option vesting schedule while an employee is on parental leave.
- Family Medical Leave Act (FMLA) - Paid parental leave runs concurrently with FMLA and will be counted toward the 12 weeks of available FMLA leave per a 12-month period. The utilization of Paid Parental Leave in conjunction with family medical leave does not extend the total duration of family medical leave to which an employee is entitled beyond twelve (12) weeks in a rolling twelve (12) month period.

c) Return To Work

Generally, an employee who returns to work after Paid Parental Leave will be returned to their original position; however, an employee will have no greater right to reinstatement than if they had not been on leave. Thus, an employee does not have the right to reinstatement if business circumstances have changed such that the employee would have lost the position even if the employee had not taken Paid Parental Leave (e.g., if the employee's position is no longer available due to job elimination). In the event that the employee's original position is not available, the employee will be offered a substantially similar position, if available, for which the employee is qualified. If the employee declines to accept this similar position, they will be deemed to have resigned. To the extent permitted by applicable law, if no substantially similar position is available for which the employee is qualified, the employee's employment will be terminated.

d) Family & Medical Leave

This policy provides an overview of the Family and Medical Leave Act (FMLA). Employees who work in a jurisdiction with a corresponding state law will be given the most expansive benefits they qualify for under the applicable laws. Please see the addendum applicable to the location in which you work for additional information. To the extent permitted by law, state and federal entitlement will be counted concurrently. The Company has posted notices of the FMLA at all Company facilities. The information in those posters is incorporated into this policy by reference.

This policy only summarizes some of the benefits, requirements, and regulations applicable to FMLA leave. If you have questions regarding FMLA or associated state law leaves, please contact the People Team at hr@mainstay.io. The People Team has more information about this policy including legal definitions of certain terms.

e) FMLA Leave Overview

Under certain circumstances, Mainstay will grant an eligible employee up to twelve (12) or twenty-six (26) weeks of FMLA within a 12-month period, depending upon the reasons for the leave. Currently, FMLA is allowed for reasons:

1. The care of a child following the birth or adoption of the child, or the placement of a foster child.
2. To care for the employee's spouse, registered domestic partner, child (under 18 years old or a child 18 and over who is incapable of self-care because of a disability), or parent with a serious health condition.
3. A serious health condition that makes the employee unable to perform the functions of the employee's job, including work related illness and injuries.
4. The care of a "covered service member," which is defined as an eligible employee's spouse, child (of any age), parent, or next of kin (i.e. nearest blood relative) who is (a) a current member of the Armed Forces, including a member of the National Guard or Reserves, who is undergoing medical treatment, recuperation, or therapy, is otherwise in outpatient status, or is otherwise on the temporary disability retired list, as a result of a serious injury or illness which is incurred in the line of duty (or for a pre-existing injury or illness which is aggravated in the line of duty); or (b) a covered veteran undergoing medical treatment, recuperation, or therapy for a serious injury or illness who was a member of the Armed Forces (including a member of the National Guard or Reserves) and who was discharged or released under conditions other than dishonorable at any time during the five-year period prior to the first date the eligible employee takes leave under this Policy.
5. Any "qualifying exigency" arising because the employee's parent, child (of any age), or spouse is on covered active duty (or has been notified of an impending call or order to covered active duty) with the Armed Forces in a foreign country or in support of a contingency operation.

Leave which qualifies as both Military Caregiver leave and leave to care for a family member with a serious health condition will be designated as Military Caregiver leave.

A "serious health condition" is an illness, injury, impairment, or physical or mental condition that causes a period of incapacity resulting in:

- The need for inpatient care in a hospital, hospice, or medical care facility, and any subsequent treatment in connection with such inpatient care;
- Absence from work, school, or other regular activities for more than three (3) consecutive, full calendar days and requiring continuing treatment or supervision by a healthcare provider at least once within seven days of the first day of incapacity and (i) requires either a regimen of continuing treatment initiated by the health care provider during the first treatment or (ii) a second in-person visit to the health care provider for treatment (the necessity of which is determined by the healthcare provider) within 30 days

- of the first day of incapacity;
- The need for continuing treatment or supervision by a healthcare provider for a condition so serious that, if not treated, would likely result in a period of incapacity of more than three (3) calendar days and requires visits for treatment by a healthcare provider at least twice a year; or
- The need for continuing treatment or supervision by a healthcare provider for prenatal care. An employee of a pregnant spouse is entitled to FMLA leave if needed to care for a pregnant spouse who is incapacitated or if needed to care for a pregnant spouse during the spouse's prenatal care, or if needed to care for the pregnant spouse following the birth of a child if the spouse has a serious health condition.

A "serious injury or illness" in the case of a covered service member means an injury or illness incurred by the service member in the line of duty, while on active duty in the Armed Forces, that may render the service member medically unfit to perform the duties of the member's office, grade, rank, or rating for which the service member is undergoing medical treatment, recuperation, or therapy; or is in outpatient status; or is on the temporary disability retired list. This may also include an injury or illness that was incurred prior to the member's active duty, but was aggravated by military service in the line of active duty.

A "qualifying exigency" may include: short notice deployment; attending military events and activities; arranging for alternative childcare or school activities; addressing financial and legal arrangements; attending counseling; rest and recuperation; parental care; attending post-deployment activities within 90 days following the termination of the covered military member's active duty status; and, addressing other events which arise out of the covered military member's active duty or call to active duty (provided that Mainstay and employee agree that such leave shall qualify as an exigency, and agree to both the timing and duration of the leave). Employees should consult with the People Team to determine whether an exigency qualifies for FMLA leave.

In general, leaves of absences granted under this policy are unpaid. However, those eligible for paid time off are required to use unused PTO days during a leave as permitted by applicable law.

f) Eligibility

To be eligible for FMLA, an employee must satisfy each of the following criteria:

1. Must have an aggregate of at least twelve months of service with the Company at any time;
2. Must have actually worked at least 1,250 hours for Mainstay within the twelve months immediately prior to the date the FMLA commences (except as excused by applicable law); and
3. Must be employed at a work site within 75 miles of which Mainstay employs at

least 50 employees for 20 consecutive weeks.

An employee who does not meet all of the criteria for FMLA eligibility or who has exhausted their FMLA entitlement may still be eligible to take time off due to disability under other applicable laws, depending on the specific facts and circumstances of the situation. Please contact Prudential, Mainstay's Leave of Absence Administrator, for additional information.

g) Leave Request Process

The employee must provide at least thirty (30) days' advance notice for foreseeable events (e.g., expected birth or adoption of a child, planned medical treatment of employee or a family member, etc.) other than for a qualifying exigency leave. For foreseeable leave due to a qualifying exigency, notice must be provided as soon as practicable, regardless of how far in advance such leave is foreseeable.

For events which are unforeseeable thirty (30) days in advance, the employee should normally notify Mainstay of the need for FMLA as soon as practicable (usually within one to two business days of learning of your need for leave), except in extraordinary circumstances. Failure to provide such notice may be grounds for delaying FMLA-protected leave, depending on the particular facts and circumstances. This can result in discipline for absences taken prior to FMLA coverage commencing.

Process to request a Leave of Absence:

- To ensure the People Team is aware of the leave request employees need to fill out this form: Leave of Absence Intake Form.
- Once submitted a member of the People Team will set up a time to review the details of your leave, review any potential accommodations and work reassignments, and plan for the leave.
- A Leave of Absence claim will need to be submitted to our leave administrator, Unum. Once an employee has submitted their claim Mainstay will be prompted to submit an employee statement confirming employment details.
- Please contact our leave administrator, Unum
 - 1-800-ASK-UNUM (1-800-275-8686) Monday-Friday 8am-8pm ET.
 - Or, log into <https://www.unum.com/employees/file-a-claim> and click on > "File your Unum claim."

The Leave Administrator, Unum, will:

- Complete your intake form for your leave request
- Determine your eligibility for federal, statutory and company leaves.
- Send you the Leave Packet

The employee must provide at least thirty (30) days' advance notice for foreseeable events (e.g., expected birth or adoption of a child, planned medical treatment of

employee or a family member, etc.) other than for a qualifying exigency leave. For foreseeable leave due to a qualifying exigency, notice must be provided as soon as practicable, regardless of how far in advance such leave is foreseeable.

For events which are unforeseeable thirty (30) days in advance, the employee should normally notify Mainstay of the need for FMLA as soon as practicable (usually within one to two business days of learning of your need for leave), except in extraordinary circumstances. Failure to provide such notice may be grounds for delaying FMLA-protected leave, depending on the particular facts and circumstances. This can result in discipline for absences taken prior to FMLA coverage commencing.

Additionally, if you are planning a medical treatment or a series of treatments or you are taking Military Caregiver leave, you must consult with Prudential first regarding the dates of such treatment to work out a schedule that best suits the needs of both the employee or the covered military member, if applicable, and Mainstay. Employees must make every reasonable effort to schedule medical treatment so that it does not disrupt Company operations, subject to the approval of their health care provider.

h) Insurance Coverage During Leave

The employee must provide at least thirty (30) days' advance notice for foreseeable events (e.g., expected birth or adoption of a child, planned medical treatment of employee or a family member, etc.) other than for a qualifying exigency leave. For foreseeable leave due to a qualifying exigency, notice must be provided as soon as practicable, regardless of how far in advance such leave is foreseeable.

For events which are unforeseeable thirty (30) days in advance, the employee should normally notify Mainstay of the need for FMLA as soon as practicable (usually within one to two business days of learning of your need for leave), except in extraordinary circumstances. Failure to provide such notice may be grounds for delaying FMLA-protected leave, depending on the particular facts and circumstances. This can result in discipline for absences taken prior to FMLA coverage commencing.

Additionally, if you are planning a medical treatment or a series of treatments or you are taking Military Caregiver leave, you must consult with Prudential first regarding the dates of such treatment to work out a schedule that best suits the needs of both the employee or the covered military member, if applicable, and Mainstay. Employees must make every reasonable effort to schedule medical treatment so that it does not disrupt Company operations, subject to the approval of their health care provider.

i) Extend of Leave

Failure to return to work following certified, approved leave may result in employment termination. Employees are eligible for FMLA up to a maximum of 12 work weeks within a

leave of absence year (defined by the first date of absence) and/or 26 work weeks in the event the leave is taken to care for a covered service member, as defined herein. For calculating an FMLA leave of absence year, a rolling 12-month period shall be used. Upon return from FMLA leave, employees will be restored to their same or an equivalent position with equivalent pay, benefits, and other employment terms in accordance with the provisions of the FMLA. If the employee's leave extends beyond the employee's FMLA leave entitlement or the employee does not return at the expiration of the FMLA leave period, employment may be terminated.

j) Intermittent Leave

If medically necessary, FMLA leave occasioned by a serious health condition may be taken intermittently (in separate blocks of time due to a serious health condition) or on a reduced leave schedule (reducing the usual number of hours an employee works per workweek or workday). FMLA leave may also be taken intermittently or on a reduced leave schedule for a qualifying exigency relating to covered military service. This leave will be monitored by the People Team.

k) Substitution of Paid Leave for Unpaid Leave

FMLA is generally unpaid leave, however non-exempt employees may use their sick leave balance or accrued PTO time and exempt employees may use their sick leave balance and/or up to 10 days of FTO while taking FMLA leave. Under these circumstances, both the paid and unpaid leave count as Family and Medical Leave. FMLA leave will run concurrently with worker's compensation leave.

l) FMLA Medical Certification

The Company will inform employees if leave will be designated as FMLA protected and the amount of leave counted against the employee's leave entitlement. Ineligible employees will be provided a reason for the ineligibility. If the Company determines that the leave is not FMLA protected, the Company will notify the employee.

Returning from Leave

If you take leave because of your own serious health condition (except if you are taking intermittent leave), in some circumstances you may be subject to provide medical certification that you are fit to resume work.

This policy is adopted to meet Mainstay's legal obligations in providing leaves of absences and is not intended to expand employees' legal rights to time off. The Company intends to administer the policy in accordance with applicable legal requirements. Certain states require employers to provide greater or different job-protected leave. When applicable, the Company complies with all such leave laws. When leave provided under one of these laws is covered under the federal FMLA, it also shall count toward the

employee's federal FMLA entitlement and as FMLA Leave under this policy, to the extent permitted under applicable law. Any leave provided by Mainstay that is not legally required is at the sole discretion of management and does not impose any legal duty upon Mainstay.

m) Disability Leave (including pregnancy)

Mainstay's Short-term Disability (STD) benefit provides time off with 100% salary continuation plus certain benefits for a defined period when an employee is unable to perform their work duties due to a serious health condition caused by an illness or injury that involves treatment by a physician. If the illness or injury is work related, then it may qualify for worker's compensation and not short-term disability. Eligibility requirements are as follows:

- Must be a regular employee working at least 20 hours per week.
- Eligible on date of hire and automatically enrolled – this is an employer paid benefit and there are no employee contributions.
- The illness or injury must be for more than seven continuous days for it to qualify as a disability, otherwise employees may use sick leave for any time off needed.

In addition to the above eligibility, for an employee to be considered disabled, the health condition must be certified by a physician and approved by Mainstay's third-party disability provider. Examples of disabilities include:

- In patient care in a hospital or medical care facility
- Continuing treatment by a physician
- Pregnancy

Employees may be eligible for up to eight (8) weeks of STD benefits at 100% base salary and 60% of base salary continuation, up to a maximum of \$2,500 per week, for weeks 9 to 12 of a disability. The benefit is subject to an elimination period which is seven (7) days. Payment begins on the 8th day of illness/injury. Employees must use their accrued sick and/or PTO/FTO for the first five business days. STD benefits may run concurrently with other federal & statutory leave benefits such as FMLA, etc.

n) Coordination with Other Benefits/Policies

Family Medical Leave Act (FMLA) - FMLA provides up to 12 weeks of unpaid, job-protected leave for specific family and medical reasons including an employee's illness/injury. STD runs concurrently with FMLA and will be counted toward the 12 weeks of available FMLA leave per 12-month period. If an employee is eligible for FMLA, Mainstay's third-party provider will automatically begin the FMLA claim at the same time as the STD claim. All other requirements and provisions under the FMLA will apply. Please refer to the FMLA policy for additional information on FMLA.

- State Leaves – Several states in the US have independent STD benefits. In some cases, these leaves will run concurrently with Mainstay's STD policy and in other cases they may run independently. The third party provider will provide information on which state leave an employee is eligible for and instructions on how to apply.
- Health Benefits - Benefits will continue and the employee portion of the premium will be deducted from their paychecks once they return to work, in accordance with applicable law.
- Long Term Disability – Once an employee exhausts their short-term disability leave – which is a maximum of 12 weeks, the employee may be eligible for long term disability (LTD). Mainstay's third-party provider will assist the employee with the LTD claim if they qualify for the benefit. If an employee is on LTD, they will be placed on unpaid leave and receive salary continuation directly from Mainstay's LTD provider. An employee can be on LTD for an unlimited time, but their Mainstay health benefits, and employment will continue for a maximum of 6 months.
- Vacation - Employees will continue to accrue vacation during paid short-term disability leave. If an employee has extended their leave with long term disability or unpaid leave, vacation accruals will cease until they return to work.
- Holidays - STD supersedes any Mainstay scheduled holiday, if a holiday occurs while an employee is on leave, the entire week is counted as a week of STD leave.

State and local laws may provide leave benefits in addition to what is provided under this policy. If you have questions regarding paid parental leave or associated state law leaves, please refer to the state specific addendum or contact the People Team at hr@mainstay.io.

o) Unpaid Personal Leave (UPL)

A leave of absence without pay (unpaid personal leave) may be granted to employees which can be used to travel, rest, pursue non-work interests, or other personal reasons. Employees must have 12 months of continuous service in order to be eligible for unpaid personal leave and must be in good standing (must meet expectations of their current role and level) at the time they request the leave. In partnership with the People team, the employees' supervisor will review and approve the request based on business needs.

Eligible employees may take an unpaid personal leave of up to six (6) continuous weeks. Mainstay benefits will continue as usual during your unpaid personal leave. You will be required to pay the unpaid premiums upon your return to work. Premiums will be doubled (current deductions owed plus one extra deduction) once you return to work for each pay period until the outstanding balance is paid in full, unless otherwise prohibited under applicable law.

Employees must email hr@mainstay.io with the appropriate approvals, start and end dates of personal leave.

p) Leave to Accommodate a Legally Recognized Disability

In addition to leave provided under the FMLA and corresponding state laws, leave may be available if necessary to reasonably accommodate employees with a workplace injury or a qualified disability under state, local and/or federal law. Such leaves are generally unpaid, although you may be eligible for workers' compensation insurance benefits, Company-sponsored disability insurance benefits, or state disability insurance wage replacement benefits (where available). Employees must substitute any accrued paid sick leave for unpaid leave. In addition, regular, eligible exempt employees may use up to 15 workdays of Flexible PTO during unpaid leave, and eligible non-exempt employees may substitute any accrued PTO for unpaid leave; however, all accrued sick leave must be used by the employee before they may use Flexible PTO or accrued PTO. Whether such leave is available depends on the circumstances of each particular case. Please contact the People Team at hr@mainstay.io for specific details.

q) Leave for Victims of Domestic Violence, Crime, Sexual Assault & Stalking

A victim of domestic violence, sexual assault or stalking, or a crime that caused physical injury, or mental injury and a threat of physical injury, may take unpaid time off to get help to protect their health, safety, or welfare or the health, safety or welfare of their child or household member, including time off to:

- undergo treatment for physical or mental injuries or abuse;
- seek medical attention for injuries;
- obtain services from a domestic violence shelter, program, rape crisis center, or victim services organization or agency;
- obtain psychological counseling;
- receive or participate in safety planning related to domestic violence, sexual assault or stalking; and
- take other actions to increase safety from future domestic violence, sexual assault, stalking, or other crime, including temporary or permanent relocation, or a temporary or permanent restraining order, injunction or other judicial relief or related legal advice.

In addition to the above reasons for leave, employees may take leave permitted by applicable state or local law if the employee's qualifying family member was a victim of a qualifying crime, domestic violence, sexual assault, harassment and/or stalking.

The employee must provide their supervisor reasonable advance notice of the intention to take time off, unless advance notice is not feasible. The request for time off must be supported with appropriate documentation. If advance notice is not feasible, the employee must provide their supervisor documentation within a reasonable time following the absence. The documentation must certify the reason for the absence in a manner that

meets applicable legal standards. If notice is not provided in accordance with the requirements of the law, the time off will be considered unauthorized. Accrued paid sick leave may be used in conjunction with this leave.

An employee who is the victim of domestic violence, sexual assault or stalking may also request a reasonable accommodation in the workplace to ensure the employee's safety. The Company will work with the employee to determine what reasonable accommodations can be made. Reasonable accommodations may include putting in locks, changing the employee's shift or phone number, transferring or reassigning the employee, or help with keeping a record of what happened to the employee. The Company may require a signed statement from the employee certifying that the request is for a proper purpose, and may also require proof showing the employee's need for accommodation, in accordance with applicable law. The Company will not tell an employee's coworkers or anyone else about an employee's request for reasonable accommodation under this policy, except as required to implement any accommodation.

The Company will not retaliate or discriminate against any employee who is a victim of domestic violence, sexual assault, stalking, or who exercises any right provided under this policy.

r) Military Leave

Mainstay provides military leave to employees who serve in the uniformed services as required by the Uniformed Services Employment and Reemployment Rights Act of 1994 (USERRA) and applicable state laws. Regular full-time and part-time employees who are members of the National Guard, Civil Air Patrol or the U.S. Armed Forces reserve unit are eligible for military leave.

Upon receipt of an active duty order or absence for voluntary or involuntary uniformed service, you should notify your manager and the People Team with as much advance notice as possible.

s) Pay During Military Leave

Mainstay will pay your regular earnings for a maximum of fifteen (15) workdays in a calendar year, unless otherwise specified under applicable state law. In addition, exempt employees will continue to receive their full salaries for any weeks in which they perform any work for the Company. If military leave exceeds fifteen (15) workdays, the remainder of leave will be unpaid, unless otherwise specified under applicable state law. During unpaid military leave, non-exempt employees may use available PTO hours and exempt employees may use up to 10 days of FTO, unless otherwise specified by current state law. In order to receive the continuation of pay from the company or available PTO or FTO hours, a copy of your military orders must be provided to the People Team. If you do not elect to receive pay from the company or use available PTO, you are not required to

submit a copy of your orders and will be on unpaid leave for the duration of our military service.

t) Extended Active Duty

Mainstay will pay your regular earnings for a maximum of fifteen (15) workdays in a calendar year, unless otherwise specified under applicable state law. In addition, exempt employees will continue to receive their full salaries for any weeks in which they perform any work for the Company. If military leave exceeds fifteen (15) workdays, the remainder of leave will be unpaid, unless otherwise specified under applicable state law. During unpaid military leave, non-exempt employees may use available PTO hours and exempt employees may use up to 10 days of FTO, unless otherwise specified by current state law. In order to receive the continuation of pay from the company or available PTO or FTO hours, a copy of your military orders must be provided to the People Team. If you do not elect to receive pay from the company or use available PTO, you are not required to submit a copy of your orders and will be on unpaid leave for the duration of our military service.

u) Reemployment Rights

Employees who have reemployment rights under USERRA shall be reemployed in the position they would have held had they remained continuously employed at Mainstay, if they are qualified for such a position or can become qualified for it with reasonable effort. Otherwise they shall be returned to the same position they held prior to military service. If returning from extended active duty, a copy of your military orders must be provided to the People Team.

Upon return to active employment with the Company, an employee has up to three (3) times the period of service, not to exceed five (5) years, to make up missed employee contributions in the 401(k) retirement plan. Annual deferral limits determined by the IRS do apply. If the period of extended active duty spans multiple calendar years, the employee designates the specific year or years their make up contributions cover.

An employee's period of active duty shall represent continuous employment service as long as the military service conforms to provisions specified in USERRA.

Because the USERRA and state law is detailed, comprehensive, and complex, you should contact the People Team with additional questions regarding your rights and responsibilities under the USERRA and state military leave laws. Please see the People Team if you have any questions regarding your eligibility for this leave. Employees requesting leave for military duty should contact the People Team to request leave as soon as they are aware of the need for leave. For request forms and detailed information on eligibility, employee rights while on leave and job restoration upon completion of leave, contact the People Team.

v) Additional Leave Policies

The Company provides time away from work consistent with all applicable stated, federal, and local laws, including, for example, state or local laws providing for school activities leave, civil air patrol leave, emergency responder leave, volunteer firefighter leave, leave for blood donation, leave for bone marrow donation, leave for organ donor leave, leave for military spouses, military leave, leave for victims of domestic violence, sexual assault or stalking, leave for parents and guardians who are required to attend the juvenile court proceedings or leave to participate in a literacy or rehabilitation program, some of which are further explained in the state-specific addenda to this Handbook. Time off that is provided under applicable laws will ordinarily be unpaid except where the law requires that it be compensated. Please contact the People Team at hr@mainstay.io for information about additional leave policies.

Emergency Leave

Mainstay will also provide up to 5 days of paid leave for unforeseeable emergency events per incident, or as required by applicable law. This emergency Leave will be reviewed on a case by case basis, so please reach out to your manager or email hr@mainstay.io if you have any questions pertaining your eligibility for this type of leave.

Some examples eligible for this type of leave include but not limited to the following:

- Natural disasters (i.e: hurricane, storms, blizzards, flooding, fires)
- Lack of power and running water due to unforeseeable natural events
- Public Health Emergency
- Evacuation of affected areas
- Property damage due to natural disasters
- Hazardous Materials Accident
- Chemical/Biological/Radiological Emergencies
- National Emergencies (War, Terrorism, etc)

State Addendums

Laws evolve regularly so while we endeavor to keep these addendums up to date, it is always best to refer to the law itself instead when seeking legal guidance. Regardless of what the addendums say, Mainstay will follow the letter of the law.

The following policies are state specific and only apply to the employees of the Company for the state in which the employee lives, and supplement the policies set forth in the handbook. In the event of any conflict between the handbook, this Addendum or applicable law, the Company will follow the approach that is most favorable to the affected employee(s) while ensuring compliance with applicable law.

Employees with questions about the policies contained in this Addendum should contact the People Team. Mainstay complies with all applicable local, state, and federal laws and requirements, including those not specifically addressed in the handbook or this Addendum. All employees should consult with the People Team at hr@mainstay.io to discuss any questions concerning employment policies, even if not addressed herein.

ALABAMA EMPLOYEES ONLY

Jury Duty Leave

Alabama employees who are summoned to serve on a jury are entitled to paid leave for any days that they are required to serve as juror. Employees eligible to take leave under this policy shall be entitled to the payment of their usual compensation. Employees are not required to use their accrued PTO during this leave. To be eligible for leave under this policy, the employee must present their supervisor with the summons for jury duty on the workday following receipt of the summons. Employees must report for work on their next regularly scheduled hour after being dismissed from a jury.

Volunteer Firefighter or Emergency Medical Service Provider Leave

Employees who are volunteer firefighters or emergency medical service providers may take leave to respond to an emergency call prior to the time the employee is due to work. Time lost may be charged against the employee for missing work. Please consult the People Team for additional details.

ALASKA EMPLOYEES ONLY

Leave for Crime Victims

An employee who has been a victim of crime or whose family member has been killed or

incapacitated as a result of a crime may take leave to respond to a subpoena to testify in a criminal proceeding or to participate in the investigation of the offense by a law enforcement agency. Please consult the People Team at hr@mainstay.io for additional details.

ARIZONA EMPLOYEES ONLY

Paid Sick Leave

Mainstay provides eligible employees with paid sick time pursuant to the Arizona Fair Wages and Healthy Families Act (FWHFA). Eligible associates working in the state of Arizona accrue one hour of paid sick time for every 30 hours worked, up to the applicable maximum accrual cap, beginning on the hire date. Exempt associates accrue at the same rate for 40 hours per workweek, but if the associate's normal work week is less than 40 hours, then sick time accrued is based on the number of hours they normally work per week. Accrued, unused paid leave will be carried over from year to year. However, once the maximum amount of time has been accrued, no further sick and safe leave will accrue until previously accrued leave is used. Compensation for accrued and unused paid sick time is not provided upon separation from employment for any reason.

Discriminating or retaliating against an associate for doing any of the following is prohibited: (1) asserting any claim or right under the FWHFA, including requesting or using earned paid sick time; (2) assisting any person in doing so; or (3) informing any person of their rights under the FWHFA.

Each associate has the right to file a complaint with the Industrial Commission's Labor Department alleging that an employer has violated the FWHFA. For additional information regarding the FWHFA, associates may refer to the Industrial Commission's website at www.azica.gov or contact the Industrial Commission's Labor Department: 800 W. Washington, Phoenix, Arizona 85007-2022; (602) 542-4515.

Voluntary Open Door Policy

Employees are encouraged, but are not required, to communicate with Mainstay whenever you are considering resigning because you believe working conditions may have become intolerable. However, Arizona law requires employees to notify their company in writing when such a working condition exists that is believed to be intolerable, that would compel the employee to resign, or that constitutes a constructive discharge, if that employee wants to preserve the right to bring a claim against the employer alleging that the working condition forced the employee to resign.

To preserve this claim, an employee must wait 15 calendar days after providing written notice before resigning from employment. Depending upon the circumstances, an

employee may be entitled to a paid or unpaid leave of absence of up to 15 days while waiting for Mainstay to respond to written communication about working conditions. Such concerns should be reported to the People Team or by emailing hr@mainstay.io.

CALIFORNIA EMPLOYEES ONLY

Sexual Harassment Prevention Training

Every two years, all employees will attend sexual harassment prevention and respect in the workplace training aimed at increasing their understanding of and preventing workplace harassment (including harassment on the basis of sexual orientation, gender identity, and gender expression) and their role in creating an underlying culture of mutual respect in the workplace. Newly hired employees will receive training within six months of assuming a position with Mainstay. Employees may also view the sexual harassment online training course created by the California Civil Rights Department at <https://calcivilrights.ca.gov/shpt>.

Reporting Discrimination, Harassment, and Retaliation

In California, employees may address their harassment, discrimination, or retaliation complaints to the California Civil Rights Department and/or the Equal Employment Opportunity Commission. The law protects employees against retaliation for filing a complaint with either the EEOC or CRD or otherwise participating in an investigation, proceeding, or hearing conducted by either agency.

California Family Rights Act

California employees who have worked at Mainstay for a total of at least 12 continuous months and who have worked at least 1,250 hours during the twelve months immediately prior to the start of the leave, may be eligible for unpaid leave under the California Family Rights Act ("CFRA"), which coincides with Mainstay's FMLA policy.

Eligible employees may take leave:

- To bond with a new child by birth, adoption or foster care placement, within one year of the child's birth, adoption or foster placement.
- To care for a child, spouse, domestic partner, parent, grandparent, grandchild, sibling or designated person with a serious health condition. CFRA may also be taken for the employee's own serious health condition.
- For a qualifying exigency related to the covered active duty or call to cover active duty of a qualifying family member in the Armed Forces of the United States.

- Eligible employees may take leave up to 12 work weeks in a 12-month period, proportional to an employee's normal work schedule. CFRA generally runs concurrently with FMLA leave.

CFRA leave does not need to be taken in one continuous period of time. Leave taken because of a serious health condition may be taken intermittently (in separate blocks of time due to a single health condition) or on a reduced-leave schedule (reducing the usual number of hours you work per workweek or workday) if medically necessary and reasonably accommodated. Employees may also be eligible for intermittent leave for the birth or placement of a child.

Eligible employees may take leave on a full-time, intermittent or reduced schedule basis. In certain situations in which intermittent leave or an alternative work schedule leave is required, Mainstay may temporarily transfer the employee to another job, with equivalent pay and benefits, to better accommodate such leave.

Whenever the need for leave is foreseeable, employees must submit written requests for such leave at least 30 days in advance. If the need for leave is unforeseeable, employees must provide notice to Mainstay at the earliest available time. Similar to FMLA leave, Mainstay requires certification from an employee's health care provider to substantiate a CFRA leave for the employee's own serious health condition, or certification from the health care provider of the employee's family member who has a serious health condition to substantiate a CFRA leave to take care of that family member. The employee and healthcare provider should not disclose or provide information regarding the employee's family medical history, genetic information, or other protected health information. Failure to provide requested medical certification in a timely manner may be grounds for delay or denial of leave.

Although leave under CFRA is unpaid, employees may be eligible for wage reimbursement benefits under Short Term Disability Insurance or Paid Family Leave. Similarly, leave taken under FMLA is unpaid but employees may be eligible for state disability insurance through the Employment Development Department, also known as the EDD. State disability insurance provides eligible employees with partial wage benefits when they are unable to work due to non-work related illness, injury or pregnancy.

If State Disability Insurance is not applicable, employees on CFRA leave are required to first substitute any accrued paid leave for the otherwise unpaid portions of CFRA leave. Under CFRA, employees may also be able to substitute sick time for up to a maximum of two weeks in an applicable 24-month period to attend to a serious health condition of a covered individual other than the employee.

Except for circumstances unrelated to the taking of CFRA leave, an employee who returns to work at the Company at the expiration of leave is entitled to return to the same position formerly held or an equivalent position with equivalent pay and benefits.

It is the Employee's responsibility to notify the Company of his/her intention to return to work from a leave of absence. Please contact the People Team at hr@mainstay.io at least 30 days prior to your return to work date. If the leave of absence was for the serious health condition of an employee, written medical certification from the employee's health care provider is required, and must include:

- Certification of the employee's fitness to return to work, and the date the release is effective
- Information regarding restrictions/limitations that must be followed, along with the anticipated time period for which these restrictions/limitations should be observed (if any).

Failure to provide written medical certification by the health care provider of the employee's fitness to return to work will result in denial of reinstatement for the employee until certification is obtained.

If an employee fails to return to work at the expiration of a leave and has not requested and been approved for an extension or their leave of absence or other reasonable accommodation, the employee will be considered to have resigned.

During the period of an employee's approved family or medical leave, Mainstay will continue to pay its portion of medical insurance premiums for the employee to the same extent as it did prior to the employee taking such leave. If the employee does not return to work at the end of the leave, Mainstay reserves the right to demand reimbursement for the premiums paid during the leave, unless the employee's failure to return to work is due to medical circumstances beyond the employee's control.

All questions regarding CFRA leave should be addressed to the People Team.

Pregnancy Disability Leave

Pregnancy disability leave ("PDL") is available for employees with disabilities related to pregnancy, childbirth or a related medical condition. "Disabled" as used in this section includes, but is not limited to, severe morning sickness, prenatal or postnatal care, bed rest, gestational diabetes, pregnancy-induced hypertension, preeclampsia, postpartum depression, childbirth, loss or end of pregnancy, and/or recovery from childbirth or loss or end of pregnancy. Only your healthcare provider (as defined by California law) may determine whether you are disabled.

An employee may take up to four (4) months of leave per pregnancy regardless of length of service with Mainstay. The four-month leave period is equivalent to the number of hours an employee would regularly work in the four (4) month period.

An employee can take PDL at any time that the employee's healthcare provider designates the employee as disabled by pregnancy, childbirth, or related medical conditions.

Conditions for which PDL is available include, but are not limited to, severe morning sickness, prenatal or postnatal care, doctor ordered bed rest, pregnancy-induced hypertension, preeclampsia, postpartum depression, and loss or end of pregnancy. The leave need not be taken at once. The pregnant employee can take PDL intermittently, as needed. PDL will run concurrently with FMLA leave, where applicable, but does not run concurrently with CFRA leave.

Except in cases of emergency, employees must provide Mainstay with advance notice of the need for leave or other accommodation related to pregnancy. If the need for leave is foreseeable, employees must provide notice at least 30 days before the leave is to begin. If 30 days' advance notice is not possible due to a lack of knowledge of when the leave, reasonable accommodation, or transfer will begin, a change in circumstances, a medical emergency, or other good cause, employees must notify Mainstay as soon as possible.

Any employee requesting PDL will be required to provide medical certification from the employee's health care provider reflecting that the employee is no longer able to work due to a pregnancy-related disability. The certification should include:

1. The date on which the employee became disabled due to pregnancy or the date of the medical advisability of transfer;
2. The probable duration of the period(s) of disability or the period(s) for the advisability of transfer; and
3. A statement that, due to disability, the employee is either unable to work at or perform any one or more of the essential functions of her position without undue risk to herself or other persons; or a statement that, due to the employee's pregnancy, a transfer to an existing and open less strenuous or hazardous position or duties is medically advisable to the extent it may be reasonably accommodated.

PDL leave is unpaid by Mainstay. Mainstay requires employees on PDL to use all available California paid sick leave. Employees may elect to use accrued vacation or other accrued paid time off as part of their PDL before taking the remainder of the leave on an unpaid basis. Employees may also be eligible for state disability benefits during the unpaid portion of PDL.

When PDL ends, the employee will be reinstated to the same position, unless either the job ceases to exist because of legitimate business reasons or the means of preserving the job would substantially undermine the ability of Mainstay to operate safely and/or efficiently. In most instances, if the same position is not available, the employee will be offered a comparable position in terms of pay, benefits, job content, and promotional opportunities.

Employees are also entitled to reasonable accommodations for medical needs related to pregnancy, childbirth or related conditions, including but not limited to, a transfer to a less strenuous or hazardous position (where one is available) or duties if medically needed because of pregnancy.

Paid Family Leave

Paid Family Leave ("PFL") is a California program offering up to eight (8) weeks of wage reimbursement in any 12-month period to (1) care for a seriously ill family member; (2) bond with a new child; or (3) participate in a qualifying event because of a family member's military deployment. While PFL provides wage replacement benefits, it does not create an independent right to a leave of absence or provide job protection.

PFL is administered by the Employment Development Department (EDD), which directly receives any application for PFL benefits, and which directly pays benefits to eligible employees. The EDD, not Mainstay, determines whether any absence qualifies an employee for benefits, and the EDD can require documentation in support of this claim.

PFL shall run concurrently with an employee's FMLA/CFRA leaves of absence, where applicable.

Leave for Victims of Domestic Violence & Sexual Assault

To the extent required by law, employees who are victims of domestic violence or of sexual assault may receive unpaid leave to: 1) obtain services from a domestic violence shelter or rape crisis center; 2) seek medical attention for injuries caused by domestic violence or sexual assault; 3) obtain psychological counseling for the domestic violence or sexual assault; 4) take action, such as relocation, to protect against future domestic violence or sexual assault; or 5) obtain a restraining order, a temporary restraining order, or other injunctive relief to protect against future domestic violence, stalking, or sexual assault.

To take this leave, the employee must provide the Company with advance notice of this leave. If advance notice is not possible, the employee must provide the Company with the following certification upon returning back to work: 1) a police report showing that the employee was a victim of domestic violence or sexual assault; or 2) a court order protecting the employee from the perpetrator or other evidence from the court or prosecuting attorney that the employee appeared in court; or 3) documentation from a medical professional, domestic violence or sexual assault victim advocate, health care provider, or counselor showing that the employee's absence was due to treatment for injuries from domestic violence or sexual assault.

The employee may choose to use any accrued personal time off, if available, for an absence described above.

The Company is also committed to complying with the laws protecting victims of domestic violence, sexual assault or stalking by providing reasonable accommodation(s) to protect the safety of the victim while at work. The Company will provide a reasonable

accommodation for any known victim of domestic violence, sexual assault or stalking to the extent required by law, provided the requested accommodation does not create an undue hardship for the Company and/or does not pose a direct threat to the health or safety of others in the workplace and/or to the individual. If you require accommodation for your safety while at work, you must notify the President. Once the Company is aware of the need for an accommodation, the Company will engage in an interactive process to identify possible accommodations.

Crime Victims Leave for Judicial Proceedings

Mainstay provides employees who are the victim of a crime (or the family member of a victim of a crime) with unpaid leave in order to attend judicial proceedings related to the crime or the rights of the victim. A family member under this policy includes a spouse, domestic partner, child, stepchild, brother, stepbrother, sister, stepsister, mother, stepmother, father, or stepfather.

When the need for leave is foreseeable, you must provide documentation of the scheduled proceeding. Such notice is typically given to the victim of the crime by a court or government agency setting the hearing, a district attorney or prosecuting attorney's office, or a victim/witness office. If advance notice is not possible, you must provide appropriate documentation within a reasonable time after the absence.

Any absence from work to attend judicial proceedings will be unpaid, unless you choose to take paid time off, such as accrued PTO.

Mainstay will not retaliate against employees who request or take leave in accordance with this policy.

Mainstay will maintain the confidentiality of any records regarding an employee's absence from work pursuant to this policy.

Reproductive Loss Leave

Employees are entitled to up to five (5) days of reproductive loss leave following a reproductive loss event. A "reproductive loss event" means the day or, for a multiple-day event, the final day of a failed adoption, failed surrogacy, miscarriage, stillbirth, or an unsuccessful assisted reproduction.

Leave must be taken within three (3) months of the event, except if, prior to or immediately following a reproductive loss event, an employee is on or chooses to go on leave from work pursuant to the CFRA, the PDL, or any other leave entitlement under state or federal law, the employee shall complete their reproductive loss leave within three months of the end date of the other leave, and pursuant to any existing leave policy of

Mainstay. The days an employee takes for reproductive loss leave may be nonconsecutive.

If an employee experiences more than one reproductive loss event within a 12-month period, the total amount of reproductive loss leave an employee is allowed to take is 20 days within a 12-month period. Reproductive loss leave is unpaid; however, employees may use accrued and available paid sick leave.

Leave taken pursuant to this policy is separate from any leave right under the California Fair Employment and Housing Act and will not run concurrently with any leave taken for CFRA.

The Company will not retaliate against any employee because of their exercise of the right to reproductive loss leave or the giving of information or testimony as to reproductive loss leave. The Company will maintain employee confidentiality relating to leave taken under this policy. Leave under this policy will not run concurrently with any leave taken for CFRA.

Paid Sick Leave

Employees in California have a right to paid sick leave as set forth under the California Healthy Workplaces Healthy Family Act of 2014. Employees' paid leave benefits under the Company's

Paid Sick Leave policy and are consistent with the requirements of California law, except as further supplemented herein.

All full-time, part-time and temporary employees in California are eligible to take paid sick leave in accordance with Mainstay's Paid Sick Leave policy. Part-time employees will be granted paid sick leave on a pro rata basis. In no event will an employee's annual allotment of paid sick leave fail to equal or exceed one (1) hour of paid sick leave for every 30 hours worked, up to the applicable maximum accrual cap. For purposes of this policy, exempt employees are deemed to work the lesser of 40 hours per workweek of their normal workweek.

Eligible employees may designate one person for whom the employee may use paid sick time to provide aid or care. A designated person means any individual related by blood or whose association with the employee is the equivalent of a family relationship. The designated person may be identified by the employee at the time the employee requests the leave. Employees are limited to one designated person per 12-month period.

For non-exempt employees, paid sick leave is paid at the employee's regular rate of pay for the workweek in which the employee takes paid sick leave. For exempt employees, paid sick leave is calculated based on the employee's salary at the time paid sick leave is

taken.

If an employee separates from Mainstay and is rehired within one year, then previously accrued, unused paid sick time will be reinstated. The employee is entitled to use such paid sick leave immediately and to accrue additional paid sick time (subject to the applicable maximum accrual cap) upon rehire.

If an employee separates from Mainstay and is rehired more than one year later, then previously accrued, unused paid sick time is not reinstated. Instead, the employee is treated as a new hire under this policy.

Some California cities have local paid sick leave ordinances, such as San Francisco, Oakland, San Diego, Los Angeles and Berkeley. Mainstay will comply with both state and local laws, and where they differ, will apply whichever one is more beneficial to the employee.

Organ and Bone Marrow Donor Leave

Employees are entitled to up to thirty (30) business days of paid time off in any one-year period for the purpose of serving as an organ to another person. An employee may also take up to five (5) business days of paid time off to donate bone marrow to another person. Employees must be employed by the Company for at least 90 days immediately preceding the commencement of leave and request leave in writing. Employees serving as an organ donor are eligible for an additional unpaid leave of absence of up to 30 business days in a one-year period, following the 30 business days of paid leave.

When available, you must utilize up to five days sick or PTO time for initial bone marrow donation leave and up to two weeks for initial organ donation leave.

Leave under this policy will not run concurrently with any leave taken for FMLA or CFRA. In order to receive the leave of absence, you must provide a written medical certification.

Lactation Accommodation Policy

Mainstay will provide a reasonable amount of break time to accommodate an employee desiring to express breast milk for the employee's infant child. If possible, the break time should be taken concurrently with other break periods already provided. If this time cannot run concurrently with meal and rest periods already provided to the employee, the break time will be unpaid if the employee is non-exempt. Exempt employees will be paid as required by law.

The lactation area or room will be a permanent or temporary location, other than a restroom, in close proximity to the employee's work area for the employee to express milk

in private. Whether permanent or temporary, the room or area will be private, shielded from view, free from intrusion, and used only for lactation purposes when the employee is using the room for such purposes. The room or location will be safe, clean, have a surface on which to place a breast pump and personal items, have electricity or access to electricity and a place to sit.

The room or location may be the employee's private office, if applicable. If because of operational, financial or space limitations, Mainstay is unable to provide a permanent lactation room or area, it will provide a temporary room or area.

Mainstay will provide access to a sink with running water and a refrigerator (or other cooling device, if a refrigerator is not possible) suitable for storing milk, in close proximity to the employee's workplace.

Employees should notify the People Team if they are requesting time to express breast milk under this policy or have questions about this policy. Mainstay will respond to a request for a lactation accommodation within five (5) business days. If Mainstay is unable to provide lactation accommodations, it will provide the employee with a written response that identifies the basis for the denial.

Employees have a right to report violations of lactation accommodation requirements to the California Labor Commissioner. The Company does, however, reserve the right to deny an employee's request for a lactation break if the additional break time will seriously disrupt operations.

Mainstay will not tolerate discrimination, harassment or retaliation against an employee based on the request for or usage of lactation accommodations.

Overtime

Mainstay will pay overtime to non-exempt employees at the rate of 1.5 times the employee's regular rate of pay for all hours worked over 40 hours in a workweek or eight (8) hours in a workday. In addition, Mainstay will pay 1.5 times a non-exempt employee's regular rate of pay for the first eight (8) hours worked on the employee's seventh (7th) consecutive day of work in a workweek.

Mainstay pays overtime to non-exempt employees at the rate of two (2) times the employee's regular rate of pay for hours worked over 12 hours in a workday. In addition, Mainstay will pay overtime at the rate of two (2) times the regular rate of pay for hours worked over eight (8) hours on the employee's seventh (7th) consecutive day of work in a workweek.

Meal and Rest Periods

Non-exempt employees who work more than five (5) hours in a day are provided the opportunity to take a 30-minute, uninterrupted, duty-free meal break commencing no later than the end of their fifth hour of work after the start of their shift. Non-exempt employees who work more than five (5) hours in a day but no more than six (6) hours may waive being provided the opportunity to take a meal period. This can be done only with the mutual consent of the employee and an authorized member of Mainstay's management, and Mainstay may require that your waiver be in writing.

Non-exempt employees who work more than ten (10) hours in a day are provided the opportunity to take a second 30-minute, uninterrupted, duty-free meal break no later than the end of their tenth hour of work after the start of their shift. A non-exempt employee can waive being provided the opportunity to take the second meal period if their hours worked do not exceed twelve (12) hours, there is mutual consent between the employee and an authorized member of Mainstay's management, and there was not a waiver of their first meal break period.

Non-exempt employees must clock out at the start of their meal periods and clock back in at the end of their meal periods when ready to resume working.

All hourly, non-exempt employees are also authorized and permitted to take a ten (10) minute paid rest break for every four (4) hours of work or major fraction thereof (defined as any amount of time over two (2) hours). A rest break need not be authorized and permitted for employees whose total daily work time is less than three and one half (3.5) hours. If you work a shift from three and one-half (3.5) to six (6) hours in length, you will be entitled to one (1) ten-minute rest break; if you work more than six (6) hours and up to 10 hours, you will be entitled to two (2) ten-minute rest breaks; and so on for subsequent four hour work periods. These breaks should be taken as close to the middle of each four-hour period insofar as operationally practicable.

Non-exempt employees must not clock out while taking authorized and permitted rest breaks, which is compensable time.

Employees are relieved of all work-related duties and may leave the Company's premises during their meal and rest breaks. Employees may not combine meal or rest periods and may not work through a meal period or rest break in order to come in late or leave early. If for any reason you are not able to take your meal period or rest breaks or are discouraged from or not permitted to do so by supervisory employees and/or operational conditions, you must immediately notify your manager or supervisor or the People Team and explain why you were unable to take any rest break or meal period.

An employee who refuses to take their breaks or meal period in accordance with this policy may be subject to discipline, up to and including termination of employment.

Family Friendly Workplace Ordinance (San Francisco Employees Only)

Under the Family Friendly Workplace Ordinance, if you have been employed for six months or more, and work at least eight hours per week on a regular basis, you may make a written request for a flexible or predictable working arrangement to care for:

- your child or children under the age of eighteen;
- a person or persons with a serious health condition in a family relationship with you; or
- A person who is age 65 or older and in a family relationship with you.

Within twenty-one (21) days of your written request for a flexible or predictable working arrangement described above, a PBP will meet with you regarding the request. Within twenty-one (21) days of that meeting, Mainstay will respond to the request. If your request is denied, Mainstay will explain the denial in a written response that sets out a legitimate business reason for the denial and will provide you with notice of the right to request reconsideration. Within twenty-one (21) days of receipt of a request for reconsideration, Mainstay will arrange a meeting with you to discuss your request and provide you with a final written decision within 14 days after the meeting.

Paid Parental Leave (San Francisco Employees Only)

The San Francisco Paid Parental Leave Ordinance ("SFPPLO") requires that the Company provide partial wage replacement for up to eight weeks to eligible employees during the time they are taking otherwise approved leave to bond with their new child during the first year after the birth or placement of the child, and utilizing the California Paid Family Leave ("PFL") Benefits Program.

You are eligible for SFPPLO benefits if you:

- Are eligible for PFL from California to bond with a baby, adopted child, or foster child;
- Have worked for Mainstay for at least 180 days before PFL starts;
- Work at least eight (8) hours per week in the geographical boundaries of San Francisco; and
- Work at least 40% of their total hours worked in the geographical boundaries of San Francisco,

SFPPLO supplemental compensation paid by the Company is calculated so that California PFL benefits plus SFPPLO supplemental compensation provide, but do not exceed, 100% of the employee's current normal gross weekly wages, up to a maximum benefit cap. Because there is a maximum benefit cap, an employee will not necessarily receive 100% of their normal gross weekly wages from a combination of California PFL benefits and SFPPLO supplemental compensation. The maximum benefit cap is determined by state law.

Application of PTO Time

To be eligible to receive SFPPLo Supplemental Compensation, an employee must agree to allow the Company to apply up to two weeks of the employee's unused PTO that the employee has accrued as of the start of the leave period to help meet the Company's obligation to provide SFPPLo supplemental compensation during the leave period. This requirement is in addition to the requirement that an employee first use up to two weeks of accrued PTO before the employee is entitled to receive California PFL Benefits.

Time Away from Work/Reinstatement

SFPPLo supplemental compensation does not provide time away from work or any reinstatement rights upon an employee's return to work. Instead, SFPPLo supplemental compensation only provides wage replacement benefits when an employee suffers a wage loss due to taking time off work for bonding with a new minor child during the first year after the birth of the child or after placement of the child with the employee through foster care or adoption.

The employee receives the actual time off from work under the Company's Family and Medical Leave Policy and/or California Family Rights Act Policy and/or Paid Parental Leave policy, assuming that the employee meets the eligibility criteria for such leave. The other terms of the leave of absence (including the employee's reinstatement rights at the end of the leave) are governed by the applicable leave of absence policy. Please refer to the Family/Medical Leave Policy and California Family Rights Act Policy for more information.

Termination and Re-employment

If an employee separates from employment prior to reaching at least 180 calendar days of employment, their prior days of employment shall count towards the SFPPLo 180 calendar day eligibility period if that employee returns to work for the Company within one year of their most recent separation date.

If an employee separates from employment after reaching 180 calendar days of employment with the Company, they will not be required to complete a new 180 calendar day eligibility period for coverage under the SFPPLo if the employee is rehired by the Company within one year of their most recent separation date. If an employee is involuntarily terminated during the leave period, the Company will continue to provide SFPPLo Supplemental Compensation for the remainder of the leave period that the employee continues to receive California PFL benefits. If an employee voluntarily separates from employment within 90 days after the California PFL benefit period ends, the employee must reimburse the Company for all SFPPLo Supplemental Compensation received from the Company, upon the Company's written request.

Reference

For more information on filing a claim for California PFL benefits please visit EDD's website at http://www.edd.ca.gov/Disability/SDI_Online.htm . The SFPPL form and poster are available at www.sfgov.org/pplo.

Medical And Dental Insurance (San Francisco Employees Only)

The Company provides a comprehensive medical and dental insurance plan for eligible regular full time employees and their dependents in accordance with the San Francisco Health Care Security Ordinance ("HCSO"). Details about medical insurance coverage are available in a separate publication.

San Francisco Public Health Emergency Leave Policy (San Francisco Employees Only)

Eligibility

Employees who work in the City or County of San Francisco are eligible for San Francisco Public Health Emergency Leave ("PHEL") as set forth below. This includes full-time, part-time, and temporary employees.

Public Health Emergency Leave

Eligible employees may only use PHEL during a "Public Health Emergency," which means a local or statewide health emergency related to any contagious, infectious, or communicable disease, declared by the City of San Francisco's local health officer or the California State health officer pursuant to the California Health and Safety Code, or an Air Quality Emergency, which is when the Bay Air Quality Management District issues a "Spare the Air" Alert.

Amount of Public Health Emergency Leave

On January 1 of each year, the Company will allocate PHEL to each employee as follows:

- Full-Time Employees: 80 hours.
- Non Full-Time Employees on a Fixed Regular Schedule: the number of hours the employee regularly works or takes paid leave over a two-week period, not to exceed 80 hours.
- Variable Schedule Employees: the average number of hours over a two-week period the employee worked or took paid leave over the previous calendar year or since their start date if after the beginning of the previous calendar year, not to exceed 80 hours.

PHEL is in addition to any regular paid time off that the Company offers such as paid sick time, vacation, or PTO. However, PHEL will run concurrently with any other supplemental paid sick leave related to a public health issue to the extent permitted by law.

Reasons for Use

Employees may use PHEL when they are unable to work (or telework) due to the following:

1. Public Health Recommendation or Requirement: The recommendations or requirements of an individual or general federal, state, or local health order (including an order issued by the local jurisdiction in which an Employee or a Family Member* the Employee is caring for resides) related to a Public Health Emergency.
2. Quarantine or Isolation: the employee, or a Family Member* the employee is caring for, has been advised by a Healthcare Provider to isolate or quarantine during a Public Health Emergency.
3. Symptoms or Diagnosis: the employee, or a Family Member* the employee is caring for, is experiencing symptoms of and seeking a medical diagnosis, or has received a positive medical diagnosis, for a possible infectious, contagious, or communicable disease associated with the Public Health Emergency.
4. School or Care Closure: the employee is caring for a Family Member* if the school or place of care of the Family Member* has been closed, or the care provider of such Family Member* is unavailable, due to the Public Health Emergency.
5. Spare the Air Alert: an Air Quality Emergency, if (a) the employee is a member of a "Vulnerable Population" (meaning they have been diagnosed with a heart or lung disease; have respiratory problems including but not limited to asthma, emphysema, or chronic obstructive pulmonary disease; are pregnant; or are age 60 or older) and (b) the employee primarily works outdoors. To use PHEL during a Spare the Air Alert, you will be required to provide medical documentation confirming that you are a member of a "Vulnerable Population."

*Family Member includes an employee's: child; parent; legal guardian or ward; sibling; grandparent; grandchild; and spouse, registered domestic partner under any state or local law, or designated person (only available if the employee has no spouse or registered domestic partner; only one "designated person" is permitted per year).

Increments of Use - PHEL may be used in increments as small as one hour.

Notice and Documentation - When requesting to use PHEL, please follow the Company's usual call-in procedures for foreseeable leave.

The Company may require a doctor's note or other documentation to confirm an employee's status as a member of a Vulnerable Population if that employee uses PHEL for a use inapplicable to an employee who is not a member of a Vulnerable Population. The Company will not otherwise require the disclosure of health information for the use of

PHEL.

No Carryover/Cash Out - Unused PHEL does not carry over from year to year, and is not cashed out at any time during employment or upon separation of employment.

No Retaliation/Discrimination - Employees may request and use PHEL under this policy without fear of discrimination or retaliation, which Company policy prohibits. Please contact Human Resources with any questions.

COLORADO EMPLOYEES ONLY

Overtime

Overtime Rate: non-exempt employees will be paid time and one-half of the regular rate of pay for any work in excess of:

- 1) Forty (40) hours per workweek;
- 2) Twelve (12) hours per workday, or
- 3) Twelve (12) consecutive hours without regard to the starting and ending time of the workday (excluding duty free meal periods), whichever calculation results in the greater payment of wages.

Colorado Overtime and Minimum Pay Standards Order

The Company incorporates Colorado Overtime and Minimum Pay Standards Order ("COMPS") into the Colorado State Addendum. Please see the written notice below.

Please reach out to the People Team with any questions.



COLORADO
 Department of
 Labor and Employment

COLORADO OVERTIME & MINIMUM PAY STANDARDS ORDER
 ("COMPS Order") #38, POSTER & NOTICE

*Effective 1/1/22; must update annually;
 new poster available each mid-December*

Colorado Minimum Wage: \$12.56/hour, or \$9.84 for Tipped Employees, in 2022 (Rule 3)

- The minimum wage is adjusted each year for inflation, so the above amounts are for only 2022.
- All employees must be paid at least the minimum wage (unless exempt in Rule 2), whether paid hourly or another way (salary, commission, piecework, etc.); except as mandated, minors can be paid 15% under full minimum wage.
- Use the highest standard if other labor laws also apply, such as Denver's minimum wage (\$15.07 in 2022).

Overtime: 1½ times regular pay rates for hours over 40 weekly, 12 daily, or 12 consecutive (Rule 4)

- Overtime is required each week over 40 hours, or day over 12, even if 2 or more weeks or days a worker fewer hours.
- Employees cannot provide time off ("comp time") instead of time and a half premium pay for overtime hours.
- Key variances/exemptions (all are detailed in Rules 2.3-2.4):
 - Modified overtime in a small number of health care jobs; exemption for certain heavy vehicle drivers.
 - No 40-hour weekly overtime in domestic child/board jobs (but 36-hour overtime for many under federal law).
 - Agriculture, as of 11/1/22: overtime after 60 hours; half-hour paid break in days over 12 hours; extra pay if over 15.

Meal Periods: 30 minutes uninterrupted and duty-free, for shifts over 5 hours (Rule 1.9)

- Can be unpaid, but only if employees are completely relieved of all duties, and allowed to pursue personal activities.
- If work makes uninterrupted meal periods impractical, eating on-duty must be permitted, and the time must be paid.
- To the extent practical, meal periods must be at least 1 hour after starting and 1 hour before ending shifts.

Rest Periods: 10 minutes, paid, every 4 hours (Rule 3.2)

Shift Hours	Up to 2	>2, up to 6	>6, up to 10	>10, up to 14	>14, up to 18	>18, up to 22	>22
Rest Periods	0	1	2	3	4	5	6

- Need not be off-site, but must not include work, and should be in the middle of the 4 hours to the extent practical.
- Rest periods are time worked for minimum wage and overtime purposes, and if employees do not authorize and permit rest periods, they must pay extra for time that would have been rest periods, including for non-hourly-paid employees.
- Key variances/exemptions:
 - In some circumstances, 10-minute rest periods can be divided into two of 5 minutes (Rule 3.2.1).
 - Agriculture: certain work requires more breaks; other is exempt (Rule 2.1, & Agriculture Labor Conditions Rules).

Time Worked: Pay for time employers allow performing labor/service for their benefit (Rule 1.9)

- All time on-premises, on-duty, or at workplaces (not just letting off-duty employees be on-premises), including:
 - putting on/coming work clothes/gear that not clothes worn outside work, cleanup/setup, or other off-clock duty,
 - waiting for assignments at work, or meeting or sharing work-related information,
 - security/safety screening, or clocking/checking in or out, or
 - waiting for any of the above tasks.
- Travel for employer benefit is time worked; normal home-to-work travel is not (details in Rule 1.9.2).
- Sleep time, if sufficiently uninterrupted and lengthy, can be excluded in certain situations (details in Rule 1.9.3).

Deductions, Credits, Charges, & Withheld Pay (Rule 6, and Article 4 of C.R.S. Title 8)

- Final pay: Owed promptly (if a termination by employer) or at next pay day (if employee resigned).
- Vacation pay: Departing employees must be paid all accrued and unused vacation pay, including paid-time off usable for vacation, without deducting or deducting for future based-on-cost-for-termination, such as resignation notice, etc.
- Deductions from pay: Allowed if listed below or in C.R.S. 8-6-105 (including deductions required by law, in a written agreement for the benefit of the employee, for theft in a police report, or for property loss after an audit).
- Tip credits: Employers can pay up to \$3.02 under minimum wage (\$9.34 in 2022, or \$12.85 in Denver), if: (a) tips (not mandatory service charges) meet pay to full minimum, & (b) tips aren't diverted to non-tipped staff/workers.
- Meal credits/deductions: Allowed for the cost or value (without employer profit) of voluntarily accepted meals.
- Lodging credits/deductions: Allowed if housing is voluntarily accepted by the employee, primarily for the employer's (not the employer's) benefit, recorded in writing, and limited to \$25 or \$100 per week (based on housing type).
- Uniforms: Must be provided at no cost unless they are ordinary clothes without special material or design; employers must pay for any special laundry required, and cannot require deposits or deduct for ordinary wear and tear.

Exemptions from COMPS (Rule 2.2 lists all; key exemptions are below)

- Executive/supervisors, administrators, and professionals paid at least a salary (not hourly wages) of \$45,000 in 2022 (\$50,000 in 2023, \$55,000 in 2024, then inflation-adjusted), except \$28.92/hour for highly technical computer work.
- Other highly compensated, non-manual labor employees paid at least 2.25 the above salary (\$101,250 in 2022).
- 20% owners, or at a nonprofit the highest-paid highest-ranked employees, if actively engaged in management.
- Vendors (not all types of subcontractors, not drivers, camp/outdoor education field staff, or property managers).

Record-Keeping & Notices of Rights (Rule 7)

- Employers must give all employees (and keep for three years) pay statements that include time worked, pay rate (including any tips and credits), and total pay.
- This year's poster must be displayed where easily accessible, or if not practical (such as for remote workers), provided within one month of beginning work and when employees request a copy.
- Employers must include a copy of this poster, or a COMPS Order, in any employee handbook or manual.
- Violation of notice of rights rules (posting or distribution), including by providing information undermining this poster, may void fines and/or ineligibility for employee-specific credits, deductions, or exemptions in COMPS.

Complaint & Anti-Retaliation Rights (Rule 8)

- Employees can send the Division (contact info below) complaints or tips about violations, or file lawsuits in court.
- Employers cannot retaliate against, or interfere with, employees exercising their rights.
- Anonymous tips are accepted; anonymity or confidentiality are protected if requested (Wage Protection Rule 4.7).
- Others and other individuals with control over work may be liable for certain violations — not just the business, even if the business is a corporation, partnership, or other entity separate from its owners (Rule 1.6).
- Immigration status is irrelevant to these labor rights; the Division will not ask or report status in investigations or rulings, and it is illegal for anyone to use immigration status to interfere with these rights (Wage Protection Rule 4.8).

This Poster is a summary and cannot be relied on as complete labor law information. For all rules, fact sheets, translations, questions, or complaints, contact:
DIVISION OF LABOR STANDARDS & STATISTICS, ColoradoLaborLaw.gov, edle_labor_standards@state.co.us, 303-318-8441 / 888-390-7936

Colorado Healthy Families and Workplace Act

The Company intends to ensure that all eligible employees who work in Colorado will receive and be permitted to use paid sick and safe time ("PSST") and Public Health Emergency Leave ("PHEL") in accordance with the Colorado Healthy Families and Workplaces Act ("HFWA"), up to the maximum annual accrual and usage amount of 48 hours. The Company provides PSST in an amount greater than what the HFWA requires, as the Company will provide 80 hours of PSST at the beginning of each calendar year or the beginning of your employment (provided pro rata depending on your start date) in accordance with its paid sick leave policy, in addition to an accrual of PTO hours in accordance with its PTO policy. At the end of each calendar year, any accrued but unused PSST will roll over into the next year, but your PSST usage will be capped at 80 hours in each year. Accrued but unused PSST will not be paid out at the time of separation from employment.

During the course of a public health emergency, employees who wish to use personal protection equipment ("PPE") in addition to any PPE the Company provides are permitted to do so if the additional PPE provides more protection than the Company's provided equipment, is recommended by a government health agency, and does not result in an inability to perform a work task.

Please see the notice/poster below for additional information, and consult with Human Resources if you have any questions regarding leave or other rights under the HFWA.



